



CHAPTER 70.

An Act to make further provision with respect to civil aviation and matters connected therewith, and, in particular, to secure the development of air transport services by corporations operating under public control.
[1st August 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

THE THREE CORPORATIONS.

The British European Airways Corporation and the British South American Airways Corporation.

1.—(1) With a view to providing civil air services in various parts of the world, and, in particular, in Europe (including the British Islands) and upon routes between the United Kingdom and South America, there shall forthwith be established two corporations to be known respectively as “the British European Airways Corporation” and “the British South American Airways Corporation.”

Establishment
and constitution of British
European
Airways
Corporation
and British
South American
Airways
Corporation.

The said corporations are hereinafter referred to as “the new corporations”; and the new corporations and the British Overseas Airways Corporation are hereinafter referred to as “the three corporations”.

(2) Each of the new corporations shall consist of a chairman, a deputy chairman, and such number of other members, not being

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less than three nor more than nine, as the Minister of Civil Aviation (hereinafter referred to as "the Minister") may from time to time determine.

(3) The members of the new corporations shall be appointed by the Minister, who shall also appoint two of the members of each of those corporations to be respectively chairman and deputy chairman thereof.

(4) Each of the new corporations shall be deemed to have been established as soon as a chairman, a deputy chairman, and at least three other members have been appointed.

(5) The supplementary provisions contained in the First Schedule to this Act shall have effect in relation to each of the new corporations.

Functions of the three corporations.

Functions of
the three
corporations.

2.—(1) Each of the three corporations shall, subject to the provisions of this Act, have power to provide air transport services and to carry out all other forms of aerial work, and may provide such services and carry out such work, whether on charter terms or otherwise, in any part of the world; and it shall be the duty of each of the said corporations to exercise those powers so as to secure that the air services which they may provide are developed to the best advantage, and, in particular, to exercise those powers so as to secure that the services provided by the corporation are provided at reasonable charges.

(2) Each of the three corporations shall have power, subject as hereinafter provided, to do anything which is calculated to facilitate the discharge of their functions under the preceding subsection, or of any other functions conferred or imposed on the corporation by or under this Act, or is incidental or conducive to the discharge of any such functions.

(3) The Minister may, by an order relating to any of the three corporations, define the powers conferred upon the corporation by the preceding provisions of this section so far as he thinks it desirable so to do for the purpose of securing that the public are properly informed as to the general nature and scope of the activities in which the corporation may engage; but nothing in any such order shall prejudice the generality of the powers conferred by the preceding provisions of this section.

Save as may be expressly provided by an order made under this subsection, none of the three corporations shall have power to manufacture air-frames or aero-engines or airscrews.

(4) Without prejudice to the generality of the powers conferred by the preceding provisions of this section, each of the three

corporations shall in particular have power, subject as hereinafter provided—

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- (a) to acquire any undertaking constituted for the purpose of providing air transport services or of engaging in any other activities of a kind which the corporation have power to carry on, or to acquire, hold or have any shares or stock in, or any financial interest in, any such undertaking ;
- (b) to promote the formation of any such undertaking as is mentioned in the preceding paragraph ; and
- (c) to lend money to, or enter into guarantees for the benefit of, any such undertaking as aforesaid.

(5) The Minister may, by an order relating to any of the three corporations, limit the powers of the corporation, to such extent as he thinks desirable in the public interest, by providing that any power of the corporation specified in the order shall not be exercisable except in accordance with a general or special authority given by him.

(6) Any order made under this section shall be laid before Parliament immediately after it has been made, and if either House of Parliament, within the period of forty days beginning with the day on which any such order is laid before it, resolves that the order be annulled, the order shall cease to have effect, but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Section one of the Rules Publication Act, 1893, shall not apply to any such order. 56 & 57 Vict.
c. 66.

3. Each of the three corporations shall appoint such committees, with such advisory or executive functions, as are necessary for the purpose of securing the efficient discharge of the functions of the corporation, and, in particular, for the purpose of securing that those functions are exercised with due regard to the circumstances and requirements of particular areas. Appointment
of committees.

4. The Minister may, after consultation with any of the three corporations, give to that corporation directions of a general character as to the exercise and performance by that corporation of their functions in relation to matters appearing to the Minister to affect the national interest ; and the corporation concerned shall give effect to any such directions. General powers
of Minister in
relation to the
corporations.

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Use of aircraft
registered in
His Majesty's
dominions.

5. Without prejudice to their general duty to comply with directions given by the Minister under this Part of this Act, each of the three corporations shall in particular comply with such directions as may from time to time be given by the Minister, after consultation with the corporation, for securing that, to such extent and in such cases as may be specified in the directions, aircraft used by the corporation in connection with any service operated by them shall be registered in some part of His Majesty's dominions.

Corporations
not to be
exempt from
taxation, etc.

6.—(1) It is hereby declared that nothing in this Act exempts any of the three corporations from liability for any tax, duty, rate, levy or other charge whatsoever, whether general or local.

(2) It is hereby declared that no provision of this Act conferring any power or imposing any duty upon any of the three corporations authorises the disregard by the corporation of any rule of law, whether having effect by virtue of any enactment or otherwise.

26 Geo. 5 &
1 Edw. 8. c. 44.

(3) Without prejudice to the generality of the provisions of the last preceding subsection, nothing in this Act shall be construed as exempting any of the three corporations, or any person employed by any of those corporations, from compliance with the provisions of any Order in Council made under section five of the Air Navigation Act, 1936 (which relates to the licensing of air transport and commercial flying).

Borrowing powers.

Borrowing
powers of the
new
corporations.

7.—(1) Each of the new corporations may, with the consent of the Treasury, or in accordance with the terms of any general authority given by the Treasury, borrow temporarily, by way of overdraft or otherwise, such sums as the corporation may require for meeting their obligations or discharging their functions under this Act.

(2) Subject to the provisions of this Act, each of the new corporations may, with the consent of the Treasury, borrow money by the issue of stock for all or any of the following purposes, that is to say—

- (a) the provision of working capital ;
- (b) the promotion of other undertakings, the acquisition of other undertakings or of shares or stock in other undertakings, and the making of loans to, and the fulfilment of guarantees given for the benefit of, other undertakings ;
- (c) the redemption of any stock which the corporation are required or entitled to redeem ; and

- (d) any other expenditure properly chargeable to capital account, including the repayment of any money temporarily borrowed under subsection (1) of this section for any of the purposes mentioned in the preceding paragraphs of this subsection.

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8.—(1) Each of the new corporations may create and issue any stock required for the purpose of exercising their powers under the last preceding section, and may also, with the consent of the Treasury, create and issue stock which is to be allotted as consideration for the acquisition of other undertakings or of shares or stock in other undertakings.

Provisions as
to stock of
the new
corporations.

(2) Stock issued by either of the new corporations and the interest thereon shall be charged on the undertaking and all property and revenues of that corporation.

(3) Subject to the provisions of this Act, the stock of each of the new corporations shall be issued, transferred, dealt with and redeemed upon such terms and in accordance with such regulations as the Minister, with the approval of the Treasury, may prescribe, and any such regulations may, in relation to any such stock, apply with or without modifications any provisions of the Local Loans Act, 1875, or of any enactment relating to stock issued by a local authority.

38 & 39 Vict.
c. 83.

9.—(1) The Treasury may guarantee, in such manner and on such conditions as they think fit, the redemption or repayment of, and the payment of any interest on, any stock issued, or temporary loan raised, by either of the new corporations under this Act.

Power of
Treasury to
guarantee
stock and
temporary
loans of the
new corpor-
ations.

(2) Any sums required by the Treasury for fulfilling a guarantee given under this section shall be charged on and issued out of the Consolidated Fund of the United Kingdom, or the growing produce thereof (hereinafter referred to as "the Consolidated Fund"), and any sums received by way of repayment of any sums so issued, or by way of interest thereon, shall be paid into the Exchequer.

(3) The undertaking and all property and revenues of the corporation concerned shall be charged with the repayment of any sums so issued out of the Consolidated Fund, including interest thereon at such rates as the Treasury may determine; and any such charge shall rank—

- (a) where the charge is a charge for the repayment of sums issued out of the Consolidated Fund in respect of stock, next after the principal and interest of the stock and any sums which the corporation are bound to set aside towards the redemption of the stock, and in priority to any other charge not existing at the date of the issue of the stock; and

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(b) where the charge is a charge for the repayment of sums issued out of the Consolidated Fund in respect of a temporary loan, next after the principal and interest of the loan (in so far as that principal or interest are charged upon the undertaking, property or revenues of the corporation), and in priority to any other charge not existing at the date of the raising of the loan.

(4) Immediately after any guarantee is given under this section, the Treasury shall lay a statement of the guarantee before each House of Parliament.

(5) Where any sum is issued out of the Consolidated Fund under this section, the Treasury shall, as soon as possible after the end of each financial year beginning with that in which the sum is issued and ending with that in which all liability in respect of the principal of the sum and in respect of interest thereon is finally discharged, lay before each House of Parliament an account of that sum and of any payments made, during the financial year to which the account relates, by way of repayment of that sum or by way of interest thereon.

Limitation of
borrowing
powers of the
three corpora-
tions.

10.—(1) Subject as hereinafter provided, the aggregate of the amounts outstanding in respect of the principal of any stock issued and of any temporary loans raised by the British European Airways Corporation shall not at any time exceed twenty million pounds.

(2) Subject as hereinafter provided, the aggregate of the amounts outstanding in respect of the principal of any stock issued and of any temporary loans raised by the British South American Airways Corporation shall not at any time exceed ten million pounds.

(3) Subject as hereinafter provided, the aggregate of the amounts outstanding in respect of the principal of any Airways Stock issued and of any temporary loans raised by the British Overseas Airways Corporation shall not at any time exceed fifty million pounds.

(4) Nothing in this section shall prevent any of the three corporations from borrowing in excess of the limit prescribed by the preceding provisions of this section for the purpose of redeeming any stock of the corporation which they are required or entitled to redeem, or of paying off any temporary loan.

Exchequer grants.

Initial Ex-
chequer grants
to the three
corporations.

11.—(1) If the Minister is satisfied that the expenditure of any of the three corporations on revenue account, during the period beginning with the passing of this Act and ending with the thirty-first day of March, nineteen hundred and forty-seven, has exceeded the revenue of the corporation during that period, he may, with the consent of the Treasury, make to the corporation a grant not exceeding the amount of the excess.

(2) The Minister may advance to any of the three corporations such sums as he thinks fit on account of grants which may ultimately become payable to the corporation under the preceding subsection :

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Provided that any such advance shall be provisional only, and when it is ascertained whether any and if so what grant falls to be paid to the corporation under the preceding subsection, such adjustments shall be made, either by way of payments by the corporation to the Minister or otherwise, as are necessary to secure that the sums ultimately received by the corporation under this section are no greater than they would have been if no such advance had been made.

(3) In this section—

- (a) the expression “ expenditure ” includes any sum set aside or allocated for any purpose, other than a sum which falls to be charged to capital account ; and
- (b) the expression “ revenue ” does not include any grant which may be made by the Minister under this Act.

12.—(1) In respect of the financial year beginning with the first day of April, nineteen hundred and forty-seven, and each subsequent financial year which expires before the first day of April, nineteen hundred and fifty-six, each of the three corporations shall, at such time before the beginning of the year as the Minister may direct, submit to the Minister—

Further
Exchequer
grants to the
three
corporations.

- (a) a programme of the air transport services which the corporation propose to provide during that year and of the other activities in which the corporation propose to engage during that year ; and
- (b) an estimate of the revenue to be received by the corporation during that year and of the expenditure to be incurred by them on revenue account during that year.

(2) Every programme and estimate so submitted shall be in such form and shall contain such particulars, and every estimate so submitted shall be made upon such basis, as the Minister may, with the approval of the Treasury, direct.

(3) If, after the Minister has considered any such programme and estimate and has given to the corporation concerned an opportunity of making representations to him with respect thereto, it appears to the Minister and to the Treasury that the expenditure on revenue account of the corporation concerned during the financial year to which the estimate relates will be in excess of their revenue during that year, the Minister and the Treasury shall determine whether any Exchequer grant should be made to the corporation concerned for the year in question, and, if such a grant is to be made, the basis on which the amount

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thereof is to be calculated ; and the Minister shall, at the conclusion of the year, make to the corporation such grant, if any, as falls to be made upon that basis.

(4) If having regard to any determination made for the purposes of the last preceding subsection it appears to the Minister to be expedient so to do, he may, notwithstanding that the year to which the determination relates is not yet ended, make to the corporation concerned such payments as the Treasury may approve on account of any grant which he may subsequently become authorised to make to the corporation for that year under the preceding provisions of this section.

Any such payment shall be provisional only, and, when it is determined what grant ultimately falls to be made to the corporation for the year under the preceding provisions of this section, shall be subject to adjustment, either by way of payments to the corporation by the Minister, or payments to the Minister by the corporation, as the case may require.

(5) In this section—

- (a) the expression “revenue” does not include any grant which may be made by the Minister under this Act ; and
- (b) the expression “expenditure” in relation to any estimate, includes any sum thereby proposed to be set aside or allocated for any purpose, other than a sum which would fall to be charged to capital account.

Revision of
Exchequer
grants to
the three
corporations.

13.—(1) If, after the Minister and the Treasury have made any determination for the purposes of subsection (3) of the last preceding section, it appears that any material assumption is, or is likely to be, at variance with the facts, the corporation concerned may, and shall if the Minister so requires, submit to the Minister a statement giving particulars of the discrepancy.

In this subsection the expression “material assumption”, in relation to any determination, means any of the assumptions which were made for the purpose of arriving at the estimate of revenue and expenditure upon which the determination was based.

(2) If having regard to any such statement, and to any information furnished to him in connection therewith, the Minister is satisfied that any determination made for the purposes of subsection (3) of the last preceding section ought to be revised, he may, with the consent of the Treasury, revise the determination, and where any such revision is made the amount of the grant to be made under the last preceding section to the corporation concerned for the financial year in question shall be increased or reduced accordingly.

(3) Where any such revision is made, such adjustments shall be made, either by way of payments to the corporation by the Minister, or payments to the Minister by the corporation, as are necessary in consequence of the revision.

(4) Where any such determination has been so revised as aforesaid, the determination may be further revised in accordance with the provisions of this section, and the said provisions shall have effect for the purposes of any such further revision as they have effect for the purposes of a first revision.

14.—(1) The Minister may, with the approval of the Treasury, make grants to any associate of any of the three corporations in consideration of promises made by the associate with respect to the performance, at any time before the first day of April, nineteen hundred and fifty-six, of functions similar to those which any of the three corporations have power to perform.

(2) It shall be a term of every agreement made by the Minister to make grants in pursuance of this section that no grants shall be payable under the agreement unless the associate complies with such requirements as may be imposed by the Minister for securing that one or more directors of the associate shall be a person or persons nominated by him.

(3) After the passing of this Act, no agreement shall be made by the Minister under section twenty-seven of the British Overseas Airways Act, 1939.

2 & 3 Geo. 6.
c. 61.

(4) In this Act the expression "associate", in relation to any of the three corporations, means any subsidiary of the corporation, or any undertaking which—

- (a) is constituted for the purpose of providing air transport services or of engaging in any other activities of a kind which the corporation have power to carry on ; and
- (b) is associated with the corporation under the terms of any arrangement for the time being approved by the Minister as being an arrangement calculated to further the efficient discharge of the functions of the corporation.

15.—(1) The total amount of the grants made by the Minister under the preceding provisions of this Part of this Act in respect of the period ending with the thirty-first day of March, nineteen hundred and forty-seven, shall not exceed ten million pounds.

(2) The total amount of the grants made by the Minister under the preceding provisions of this Part of this Act in respect of the year beginning with the first day of April, nineteen hundred and forty-seven, shall not exceed ten million pounds.

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(3) The total amount of the grants made by the Minister under the preceding provisions of this Part of this Act in respect of any one of the financial years which begin after the end of March, nineteen hundred and forty-eight, shall not exceed eight million pounds.

Expenses and
receipts of
Minister.

16. All sums payable by the Minister in accordance with the preceding provisions of this Act shall be defrayed out of moneys provided by Parliament; and any sums received by him in accordance with those provisions shall be paid into the Exchequer.

General financial provisions.

Reserve
funds.

17.—(1) Each of the three corporations shall establish a reserve fund.

(2) The management of the said fund, the sums to be carried from time to time to the credit thereof, and the application thereof shall be as the corporation concerned may determine:

Provided that—

- (a) no part of the said fund shall be applied otherwise than for purposes of the corporation; and
- (b) the power of the Minister to give directions to the corporation shall extend to the giving to them, with the approval of the Treasury, of directions as to any matter relating to the establishment or management of the said fund, the carrying of sums to the credit thereof, or the application thereof, notwithstanding that the directions may be of a specific character.

Application
of revenues.

18.—(1) Any excess of the revenues of any of the three corporations for any financial year over the total sums properly chargeable by the corporation to revenue account for that year, including in such sums (without prejudice to the generality of that expression) sums credited under the last preceding section to the reserve fund of the corporation, shall be applied by the corporation in such manner as the Minister, with the approval of the Treasury and after consultation with the chairman of the corporation, may direct.

(2) Any direction given under the preceding subsection may require the whole or any part of any such excess as aforesaid to be paid into the Exchequer:

Provided that the total amount which has been paid into the Exchequer out of the revenues of any one of the three corporations by virtue of any such directions shall not at any time exceed the total amount of the grants which have been made by the Minister to that corporation under the preceding provisions of this Act.

*Staff, wages, pensions, etc.*PART I.
—cont.

19.—(1) It shall be the duty of each of the three corporations, except in so far as the corporation are satisfied that adequate machinery exists for achieving the purposes of this subsection, to seek consultation with any organisation appearing to the corporation to be appropriate with a view to the conclusion between the corporation and that organisation of such agreements as appear to the parties to be desirable with respect to the establishment and maintenance of machinery for—

Terms and
conditions of
employment
of staff, etc.

- (a) the settlement by negotiation of terms and conditions of employment of persons employed by the corporation, with provision for reference to arbitration in default of such settlement in such cases as may be determined by or under the agreements ; and
- (b) the discussion of matters affecting the safety, health and welfare of persons employed by the corporation, and of other matters of mutual interest to the corporation and such persons, including efficiency in the operation of the corporation's services.

(2) Where any of the three corporations conclude such an agreement as is mentioned in the last preceding subsection, or any variation is made in such an agreement, the corporation concerned shall forthwith transmit particulars of the agreement or the variation to the Minister and the Minister of Labour and National Service.

20.—(1) The Minister shall by regulations provide for the establishment and maintenance of one or more pension schemes for the purpose of providing pensions and other similar benefits in respect of the service of corporation employees of such classes as may be specified in the regulations, and the Minister shall by such regulations in particular provide for securing benefits in the case of injury or death.

In this section the expression " corporation employee " means an employee of any of the three corporations.

(2) Regulations made under this section, may, for the purpose of providing funds from which benefits are to be paid, provide for the payment of contributions by the corporation concerned or by employees of the corporation, or both by the corporation and by such employees, and may in particular provide for the payment of such contributions in respect of service as an employee of any of the three corporations before the coming into force of the regulations, and for the payment of benefits in respect of any such service.

(3) Regulations made under this section may make provision for securing that service with any undertaking other than the three corporations may, in such cases, upon such terms and

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subject to such conditions as may be specified in the regulations, be reckoned for the purposes of the payment of benefits under the regulations.

(4) No person shall be a member of any fund or scheme established under section forty of the British Overseas Airways Act, 1939, unless he was a member of that fund or scheme immediately before the passing of this Act, or was, immediately before the passing of this Act, in the employment of the British Overseas Airways Corporation.

(5) Regulations made under this section may make such provision as the Minister thinks necessary for enabling any person who is a member of any fund or scheme established under the said section forty, or who is for the time being participating in any such scheme as is mentioned in the Sixth Schedule to the said Act of 1939, to withdraw from that fund or scheme in consideration of being admitted, upon such terms as may be provided for by the regulations, to any scheme established under subsection (1) of this section.

(6) No fund or scheme shall be established under the said section forty after the passing of this Act.

*Accounts, reports and information.*Accounts
and audit.

21.—(1) Each of the three corporations shall keep proper accounts and proper records in relation thereto, and shall prepare in respect of each financial year a statement of accounts in such form as the Minister may, with the approval of the Treasury, direct, being a form which shall conform with the best commercial standards and which shall distinguish between the provision of air transport facilities upon scheduled journeys, the provision of air transport facilities otherwise than upon such journeys, and the carrying out of aerial work which does not consist of the provision of air transport facilities.

(2) The statement of accounts prepared in respect of any financial year by any of the three corporations shall contain such particulars with respect to any undertaking which at any time during that year was a subsidiary of the corporation as the Minister may direct.

(3) The accounts of each of the three corporations shall be audited by auditors appointed annually by the Minister.

(4) As soon as the accounts of any of the three corporations for any financial year have been audited, the corporation shall send to the Minister a copy of the statement of accounts prepared by them for that year in accordance with this section, together with a copy of any report made by the auditors on that statement or on the accounts of the corporation.

(5) The Minister shall lay a copy of every such statement and report before each House of Parliament.

22.—(1) Each of the three corporations shall, as soon as possible after the end of each financial year, make to the Minister a report dealing with the operations of the corporation during that year.

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—cont.
Annual report
and periodical
returns

(2) The Minister shall lay a copy of every such report before each House of Parliament.

(3) The report for any year shall set out any direction given by the Minister to the corporation during that year unless the Minister has notified to the corporation his opinion that it is against the national interest so to do.

(4) Each of the three corporations shall, in respect of each planning period, as defined for the purposes of this section, and at such time before the beginning of that period as the Minister may direct, submit to the Minister—

(a) a programme of the air transport services which the corporation propose to provide during that period and of the other activities in which the corporation propose to engage during that period ; and

(b) an estimate of the receipts of the corporation during that period, and of the expenditure, whether on revenue account or on capital account, to be incurred by the corporation during that period.

(5) In respect of the financial year beginning with the first day of April, nineteen hundred and forty-seven, and each subsequent financial year, each of the three corporations shall, at such time before the beginning of the year as the Minister may direct, submit to the Minister an estimate of the expenditure to be incurred by the corporation on capital account during the year.

(6) Without prejudice to their duties under the preceding provisions of this Act, each of the three corporations shall provide the Minister with such information relating to the undertaking of the corporation and to the undertaking of any associate of the corporation (including information relating to any activities proposed to be undertaken by the corporation or any such associate) as the Minister may from time to time require :

Provided that no such requirement shall impose upon any of the three corporations the duty of providing the Minister with information which the corporation do not possess and cannot reasonably be expected to obtain.

(7) For the purpose of providing the Minister with any information which he may require in accordance with the provisions of the last preceding subsection, each of the three corporations shall permit any person authorised by the Minister in that behalf to inspect and make copies of the accounts, books, documents or papers of the corporation, and shall afford such explanation thereof as that person or the Minister may reasonably require.

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(8) In this section—

- (a) the expression “planning period” means the period of three financial years beginning with the first day of April, nineteen hundred and forty-seven, and every period of three financial years which follows immediately upon the end of a planning period ;
- (b) the expression “receipts” does not include any grant which may be made by the Minister under this Act ; and
- (c) the expression “expenditure”, in relation to any estimate, includes any sum thereby proposed to be set aside or allocated for any purpose.

Reservation of certain air services to the three corporations and their associates.

Reservation of certain air services to the three corporations and their associates. 23.—(1) Subject to the provisions of this section, it shall not be lawful for any person, other than the three corporations, their associates, and the servants and agents of the three corporations and their associates, to carry passengers or goods by air for hire or reward upon any scheduled journey between two places of which at least one is in the United Kingdom.

(2) In this Act the expression “scheduled journey” means one of a series of journeys which are undertaken between the same two places and which together amount to a systematic service operated in such a manner that the benefits thereof are available to members of the public from time to time seeking to take advantage of it.

(3) Nothing in this section shall restrict the right of any person—

- (a) to carry passengers for the sole purpose of instructing them in flying or the duties of aircrews ; or
- (b) to carry passengers or goods for the sole purpose of providing an air ambulance or rescue service ; or
- (c) in accordance with arrangements for the time being approved by the Minister as being in the public interest, to carry a party of passengers and their baggage (if any) upon a series of three or more journeys organised as a tour for the common enjoyment of those passengers.

(4) Nothing in this section shall restrict the right of any person, for the purposes of any air transport undertaking of which the principal place of business is in any country outside the United Kingdom, to provide transport for passengers or goods in accordance with the terms of any agreement for the time being in force between His Majesty's government in the United Kingdom and the government of that country.

(5) A person who carries a passenger, or carries any goods, in contravention of the provisions of this section shall be liable in respect of each offence—

- (a) on summary conviction thereof, to a fine not exceeding five hundred pounds, or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment; and
- (b) on conviction thereof on indictment, to a fine not exceeding five thousand pounds, or to imprisonment for a term not exceeding two years, or to both such fine and such imprisonment.

24.—(1) For the purpose of determining whether an offence has been committed against the last preceding section, the Minister or anyone acting under his authority may require any person who, whether by providing an aircraft or negotiating a contract or otherwise, makes facilities available for travel upon any journey by air between two places of which at least one is in the United Kingdom, or for the consignment of goods upon any such journey, or any servant or agent of any such person as aforesaid, to provide the Minister with such information and documents relating to the journey as may be specified in the requirement.

Power of
Minister to
require
information.

(2) Any person having information or documents in his possession who fails to comply with any requirement relating to that information or those documents, being a requirement duly made under the preceding subsection, shall be liable on summary conviction to a fine not exceeding one hundred pounds.

*Amendments and adaptations of the British Overseas
Airways Act, 1939.*

25.—(1) The supplementary provisions contained in the First Schedule to this Act shall have effect in relation to the British Overseas Airways Corporation in lieu of any corresponding provisions made by or under the British Overseas Airways Act, 1939; and accordingly any reference in the said Schedule to "the corporation" shall be construed as including a reference to the British Overseas Airways Corporation.

Amendments
and adapta-
tions of
2 & 3 Geo. 6.
c. 61.

(2) Subsection (2) of section one of the said Act of 1939 (which determines the number of members of the British Overseas Airways Corporation) shall have effect as if for the word "nine" there were substituted the word "three", and as if for the word "fifteen" there were substituted the word "nine".

(3) The said Act of 1939 shall have effect as it, after subsection (1) of section fourteen thereof, there were inserted the following subsection:—

"(1A) Without prejudice to their powers under the last preceding subsection, the Corporation may, with the consent

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of the Treasury, create and issue Airways Stock which is to be allotted as consideration for the acquisition of any other undertaking or of shares or stock in any other undertaking."

(4) Subsections (3) and (5) of section nine of this Act shall have effect in relation to sums issued out of the Consolidated Fund under section sixteen of the said Act of 1939 (which empowers the Treasury to guarantee stock and loans of the British Overseas Airways Corporation) as they have effect in relation to sums issued out of the Consolidated Fund under the said section nine.

(5) In section thirty-two of the said Act of 1939 (which relates to the powers of the Minister in case of emergency) any reference to "the Corporation" shall be construed as including a reference to the new corporations.

(6) The provisions of the said Act of 1939 specified in the Second Schedule to this Act shall cease to have effect:

Provided that, without prejudice to the provisions of subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), nothing in this subsection shall affect the provisions of subsection (2) of section one of the said Act of 1939 relating to the time when the British Overseas Airways Corporation is deemed to have been established.

PART II.

POWERS OF MINISTERS IN RELATION TO LAND.

Power of
Minister as to
acquisition of
land, etc.
9 & 10 Geo. 6.
c. 49.

26.—(1) The Minister may be authorised to purchase land compulsorily for any purpose connected with the discharge of his functions.

(2) The provisions of the Acquisition of Land (Authorisation Procedure) Act, 1946, shall have effect with respect to the compulsory purchase of land by the Minister under this section as if, in subsection (1) of section one of that Act, after paragraph (b) thereof, there were inserted the following paragraph:—

"(c) by the Minister of Civil Aviation under section twenty-six of the Civil Aviation Act, 1946":

Provided that section three of that Act shall not have effect in relation to land acquired or proposed to be acquired by the Minister.

(3) After the passing of this Act, the Minister shall not be authorised to purchase land compulsorily under the Military Lands Acts, 1892 to 1903.

10 & 11 Geo. 5.
c. 80. (4) For the purposes of subsections (1) and (3) of section fifteen of the Air Navigation Act, 1920 (which relates to the acquisition of land by the Minister) the expression "purposes of civil aviation"

shall be deemed to include any purpose connected with the discharge of the functions of the Minister, and subsection (2) of the said section fifteen shall have effect as if the words "for purposes of civil aviation" were omitted therefrom.

(5) Without prejudice to his powers to acquire land by agreement under the Military Lands Acts, 1892 to 1903, the Minister may acquire land by agreement otherwise than under those Acts, and may acquire by agreement any right in or in relation to land.

(6) Where any person having an interest in land (hereinafter referred to as "the grantor") grants or agrees to grant to the Minister any right (whether in perpetuity or for any other period and whether capable of subsisting as a legal estate or not) in or in relation to that land (including a right to enter upon that land, a right to carry out and maintain works on that land, a right to instal or maintain structures or apparatus on, under, over or across that land, and a right restrictive of the user of that land) the grant or agreement shall be binding upon any person deriving title or otherwise claiming under the grantor to the same extent as it is binding upon the grantor, notwithstanding that it would not have been binding upon that person apart from the provisions of this subsection.

27.—(1) The Minister may, if he is satisfied that it is expedient so to do in order to secure the safe and efficient use for civil aviation purposes of any land which is vested in him or which he proposes to acquire, or in order to secure the provision of any services required in relation to any such land, or in order to secure that civil aircraft may be navigated with safety and efficiency, by order provide for the creation in his favour of easements over land, or of other rights in or in relation to land, including rights to carry out and maintain works on any land and to instal and maintain structures and apparatus on, under, over or across any land.

Power of
Minister to
obtain rights
over land.

(2) Any such order may contain such consequential, incidental and supplemental provisions as appear to the Minister to be necessary or expedient for the purposes of the order, including, in particular, provisions for authorising persons to enter upon land for the purpose of carrying out, installing, maintaining or removing any works, structures or apparatus.

(3) No person shall, in the exercise of a power conferred by any such order, enter upon land which is occupied, unless, not less than seven days before the day upon which the entry is made, there has been served upon the occupier of the land a notice stating that an entry will be made upon the land upon that day in the exercise of powers conferred by the order, and specifying the purposes for which the entry will be made:

Provided that nothing in this subsection shall restrict the right of any person to enter upon land in a case of emergency or for the

PART II.
—cont.

purpose of performing any functions which are required to be performed from time to time in connection with the maintenance or use of any works, structures or apparatus.

9 & 10 Geo. 5.
c. 57.

(4) Where any land is damaged in the exercise of any power of entry conferred by any such order, the Minister shall pay such compensation to the persons interested in the land as may be just; and where any dispute arises as to whether compensation is payable under this subsection, or as to the amount of any such compensation, or as to the persons to whom it is payable, the dispute shall be referred to and determined by such one of the official arbitrators appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919, as may be selected in accordance with rules made by the Reference Committee under that section; and rules so made may make provision with respect to the reference and determination of any such dispute and may apply any of the provisions in sections three to six of the said Act with such modifications as may be necessary.

(5) The ownership of anything shall not be affected by reason only that it is placed on or under, or affixed to, any land in pursuance of any such order; and, so long as any such order is in force, no person shall, except with the consent of the Minister, wilfully interfere with any works carried out on any land in pursuance of the order, or with anything installed on, under, over or across any land in pursuance of the order.

If any person contravenes the preceding provisions of this subsection, he shall be liable, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding five hundred pounds or to both such imprisonment and such fine; and every person who wilfully obstructs any person in the exercise of any power of entry conferred by such an order as aforesaid shall be liable, on summary conviction, to a fine not exceeding one hundred pounds.

(6) Subject to the special provisions of this Part of this Act relating to statutory undertakers, the provisions of the Third Schedule to this Act shall have effect with respect to orders under this section.

(7) Where an order under this section provides for the creation of an easement over land held by a statutory undertaker for the purposes of the carrying on of his undertaking, or of any other right in or in relation to such land, then, if on a representation made to the appropriate Minister before the expiration of the time within which objections to the order may be made the appropriate Minister is satisfied that the easement or right could not be enjoyed without serious detriment to the carrying on of the undertaking, and certifies accordingly, the order shall be subject to special parliamentary procedure.

28.—(1) The Minister of Transport may, if he is satisfied that it is necessary so to do in order to secure the safe and efficient use for civil aviation purposes, including the testing of aircraft designed for civil aviation, of any land vested in the Minister of Civil Aviation or the Minister of Supply, or of any land which the Minister of Civil Aviation or the Minister of Supply proposes to acquire, by order authorise the stopping up or diversion of any highway.

PART II.
—cont.
Power of
Minister of
Transport to
stop up and
divert high-
ways, etc.,
in the interests
of civil
aviation.

(2) An order under subsection (1) of this section may provide for all or any of the following matters, that is to say—

- (a) for securing the provision or improvement of any highway so far as the Minister of Transport thinks such provision or improvement necessary or desirable in consequence of any such stopping up or diversion as aforesaid ;
- (b) for directing that any highway to be provided or improved in pursuance of the order shall be repairable by the inhabitants at large, and for specifying the authority which is to be the highway authority therefor ;
- (c) for directing that any highway to be provided or improved in consequence of the stopping up or diversion of a trunk road under the order shall itself be a trunk road for all or any of the purposes of the enactments relating to trunk roads ;
- (d) for the retention or removal of any cables, mains, pipes, wires or similar apparatus placed along, across, over or under any highway stopped up or diverted under the order, and for the extinguishment, modification or preservation of any rights as to the use or maintenance of that apparatus ;
- (e) if any highway is to be provided or improved under the order, for authorising or requiring the provision of any such apparatus as aforesaid along, across, over or under that highway, in lieu of any apparatus removed from a highway in pursuance of the order, and for conferring rights as to the use or maintenance of apparatus so provided ;
- (f) for requiring the Minister of Transport or any other specified authority or person—
 - (i) to pay, or to make contributions in respect of, the cost of doing any work provided for by the order or any increased expenditure to be incurred which is ascribable to the doing of any such work ; or
 - (ii) to repay, or to make contributions in respect of, any compensation paid by the highway authority in respect of restrictions imposed under section one or section two of the Restriction of Ribbon Develop-
ment Act, 1935, as respects any highway stopped up
or diverted under the order.

25 & 26 Geo. 5.
c. 47.

PART II.
—cont.

(3) An order under subsection (1) of this section may contain such consequential, incidental and supplemental provisions as appear to the Minister of Transport to be necessary or expedient for the purposes of the order.

(4) Any such order shall be subject to special parliamentary procedure.

9 & 10 Geo. 6.
c. 18.

The First Schedule to the Statutory Orders (Special Procedure) Act, 1945 (which sets out the notices to be given and the other requirements to be complied with before an order is made) shall apply in relation to orders made under this section, but shall, as it applies in relation to those orders, have effect as if paragraph 1 of the said Schedule included provisions :—

- (a) requiring notice of the order as proposed to be made to be displayed in a prominent position at the ends of so much of any highway as is proposed to be stopped up or diverted under the order ;
- (b) requiring notice of the order as proposed to be made to be sent to every local authority in whose area any highway to be stopped up or diverted under the order, or any highway to be provided or improved under the order, is or will be situated ; and
- (c) requiring notice of the order as proposed to be made to be served upon any water, gas or electricity undertakers having any cables, mains, pipes or wires laid along, across, under or over any highway to be stopped up or diverted under the order.

In this subsection the expression “ local authority ” includes a parish council and the parish meeting of a rural parish not having a separate parish council.

(5) The powers of the Minister of Transport under subsection (1) of this section shall include power to make an order authorising the stopping up or diversion of any highway which is temporarily stopped up or diverted under any other enactment ; and the provisions of this section shall not prejudice any power conferred upon the Minister of Transport by any other enactment to authorise the stopping up or diversion of a highway.

(6) The Minister of Transport may be authorised to purchase land compulsorily for the purpose of providing or improving any highway which is to be provided or improved in pursuance of an order under subsection (1) of this section, or for any other purpose for which land is required in connection with such an order ; and the provisions of the Acquisition of Land (Authorisation Procedure) Act, 1946, except section two thereof, shall have effect as if, at the end of paragraph (b) of subsection (1) of section one thereof, there were inserted the words “ or under section twenty-eight of the Civil Aviation Act, 1946 ”.

29.—(1) The Minister may, if he is satisfied that it is necessary so to do in order to secure the safe and efficient use for civil aviation purposes of any land, structures, works or apparatus vested in him, or which he proposes to acquire or instal, by order declare that any area of land specified in the order shall be subject to control by directions given in accordance with the provisions of this section.

(2) Where any such order is in force, the Minister may, in pursuance of any general or special authority given by the order, give directions—

- (a) for requiring the total or partial demolition of any building or structure within the area to which the order relates ;
- (b) for restricting the height of trees upon any land within the area, or for requiring any tree upon any such land to be cut down or reduced in height ;
- (c) for extinguishing any private right of way over land within the area ;
- (d) for restricting the installation of cables, mains, pipes, wires or other apparatus upon, across, under or over any land within the area ;
- (e) for extinguishing, at the expiration of such period as may be determined by the directions, any subsisting right of installing or maintaining any such apparatus as aforesaid upon, across, under or over any land within the area ;
- (f) for requiring that, before the expiration of such period as may be determined by the directions, any such apparatus shall be removed from any land within the area.

(3) Any such order may contain such consequential, incidental and supplemental provisions as appear to the Minister to be necessary or expedient for the purposes of the order, including, in particular, provisions for empowering any person authorised in that behalf by the Minister, to remove, pull down, cut down, or alter so as to bring into conformity with the requirements of any directions given under the order, any building, structure, tree or apparatus which contravenes those requirements.

(4) Any such order shall be subject to special parliamentary procedure.

(5) Before making any order under this section, the Minister shall consult every local authority within the area of which the whole or any part of the area of land to which the proposed order will relate is situated.

Notwithstanding anything in subsection (1) of section two of the Statutory Orders (Special Procedure) Act, 1945, the duty

PART II.

—cont.

Power of
Minister to
exercise
control over
land in
the interests
of civil
aviation.

PART II.
—cont.

of the Minister to comply with the requirements of this subsection shall not excuse him from the duty of complying with the requirements of the First Schedule to that Act.

(6) Subject to the special provisions of this Part of this Act relating to statutory undertakers, the provisions of the Fourth Schedule to this Act shall have effect with respect to directions given under an order made under this section.

(7) The powers of the Minister under this section shall not prejudice his power to acquire land for the purpose of securing the observance of any requirement or restriction which might have been imposed in relation to the land under this section.

Consecrated
land and
burial grounds.
7 & 8 Geo. 6.
c. 47.

30.—(1) Section twenty-eight of the Town and Country Planning Act, 1944 (which relates to consecrated land and burial grounds) shall have effect in relation to any land acquired by the Minister as if the Minister had acquired that land under Part I of that Act:

Provided that the power of making regulations for the purposes of that section as applied by this section shall be exercisable by the Minister, and accordingly the references in subsection (3) of that section to "the Minister" shall be construed as including references to the Minister of Civil Aviation.

(2) Any regulations made by the Minister by virtue of the last preceding subsection shall be laid before each House of Parliament immediately after they are made; and if either House of Parliament, within the period of forty days beginning with the day on which any such regulations are laid before it, resolves that the regulations be annulled, the regulations shall cease to have effect, but without prejudice to the validity of anything previously done thereunder, or to the making of new regulations.

In reckoning any such period of forty days, no account shall be taken of any period during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Section one of the Rules Publication Act, 1893, shall not apply to any such regulation.

(3) When land has been acquired by the Minister of Transport in pursuance of this Part of this Act, the preceding provisions of this section shall have effect as if the land had been acquired by the Minister of Civil Aviation, but with the substitution of references to the Minister of Transport for references to the Minister of Civil Aviation.

Power of
entry for
purposes of
survey.

31.—(1) Where a Minister has, under or in pursuance of this Part of this Act, made an order—

- (a) authorising the compulsory purchase of land;
- (b) providing for the creation in his favour of easements over land or of other rights in or in relation to land; or

- (c) declaring that any area of land shall be subject to control by directions ;

PART II.
—cont.

or has under consideration the making of any such order, any person authorised in writing by that Minister may at all reasonable times, on producing, if so required, evidence of his authority in that behalf, enter upon any of that land in order to make any survey which the Minister requires to be made for the purpose of any steps to be taken in consequence of the order or, as the case may be, for the purpose of determining whether the order should be made :

Provided that admission shall not, by virtue of this subsection, be demanded as of right to any land which is occupied unless twenty-four hours' notice of the intended entry has been served on the occupier.

(2) If any person obstructs a person so authorised as aforesaid in the exercise of any power conferred by this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(3) Where any land is damaged in the exercise of a power of entry conferred in pursuance of an authority given under this section, or in the making of any survey for the purpose of which any such power of entry has been so conferred, the Minister by whom the authority was given shall pay such compensation to the persons interested in the land as may be just ; and where any dispute arises as to whether compensation is payable under this subsection, or as to the amount of any such compensation, or as to the persons to whom it is payable, the dispute shall be referred to and determined by such one of the official arbitrators appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919, as may be selected in accordance with rules made by the Reference Committee under that section ; and rules so made may make provision with respect to the reference and determination of any such dispute and may apply any of the provisions of sections three to six of the said Act with such modifications as may be necessary.

32.—(1) Where the Minister has acquired land for purposes connected with the discharge of his functions, or gives a direction in relation to any land under section twenty-nine of this Act, and the use of the land by the Minister for those purposes, or, as the case may be, the execution of the direction, will involve the displacement of persons residing in premises on the land, it shall be the duty of the Minister, in so far as there is not other residential accommodation available on reasonable terms to the persons who require it in consequence of the displacement, being residential accommodation suitable to the reasonable requirements of those persons, to secure the provision of such accom-

Provisions as
to displace-
ments from
land.

PART II.
—cont.

modation in advance of the displacement :

Provided that the Minister shall not be required by virtue of this subsection to secure the provision of accommodation in advance of a displacement if he is satisfied that for reasons of exceptional public importance it is essential that the displacement should be effected before such accommodation as aforesaid can be found. .

(2) Where upon the determination of any tenancy the Minister is entitled to possession of any building, or any part of a building, then, whatever may be the value or rent of the building or part of a building, the Minister may obtain possession thereof under the Small Tenements Recovery Act, 1838, as in the cases therein provided for, at any time after the tenancy has expired or has been determined.

1 & 2 Vict.
c. 74.

(3) The Minister may pay :—

- (a) to any person who is displaced in order that land may be used by the Minister for purposes connected with the discharge of his functions, such reasonable allowance as the Minister thinks fit towards the expenses of that person in removing ;
- (b) to a person carrying on any business in a building from which he is so displaced, such reasonable allowance (in addition to any allowance paid under the preceding paragraph) as the Minister thinks fit towards the loss which, in the opinion of the Minister, that person will sustain by reason of the disturbance to his business consequent upon his having to quit the building.

In estimating any such loss as aforesaid the Minister shall have regard to the period for which the premises occupied by the person displaced might reasonably have been expected to be available for the purpose of his business, and to the availability of other premises suitable for that purpose.

(4) Where the Minister of Transport acquires land in pursuance of this Part of this Act, the provisions of this section shall have effect in relation to that land as if the references therein to the Minister were references to the Minister of Transport and as if the references therein to purposes connected with the discharge of the functions of the Minister were references to the purposes for which the land is so acquired by the Minister of Transport.

33.—(1) Subject to the provisions of this section, the compensation to be paid to a statutory undertaker—

- (a) in respect of the compulsory purchase, in pursuance of this Part of this Act, of any land held by the undertaker for the purposes of the carrying on of his undertaking ;
- (b) in respect of the creation, by virtue of an order made under this Part of this Act, of any easement over any such land or of any other right in or in relation to such land ;

Special
provisions
relating to
statutory
undertakers

- (c) in respect of any direction under section twenty-nine of this Act which affects any building, structure or apparatus held or used by him for the purposes of his undertaking, or which affects any of his rights to instal or maintain apparatus for those purposes, or which affects any right of way enjoyed by him for those purposes ;

shall in default of agreement be assessed by the arbitration of the tribunal constituted in accordance with the provisions of Part II of the Fourth Schedule to the Town and Country Planning Act, 1944, and the amount of the compensation shall be an amount calculated in accordance with the provisions of paragraph 2 of that Schedule :

Provided that, as respects compensation in respect of a compulsory purchase, if, before the expiration of two months from the date on which notice to treat is served in respect of the interest of the person by whom the statutory undertaking is carried on, that person gives notice in writing to the Minister by whom the order was made that he elects that, as respects all or any of the land comprised in the purchase, the compensation shall be ascertained in accordance with the enactments, other than Rule (5) of the Rules set out in section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, which would be applicable apart from the provisions of this subsection, the compensation shall be so ascertained.

(2) The said paragraph 2 shall have effect for the purposes of this section as if, in sub-paragraph (1) thereof, the words " under section twenty-five of this Act " were omitted, as if, at the end of the said sub-paragraph there were inserted the following words—

" (e) in the case of compensation in respect of the imposition of a requirement to demolish a building or structure either wholly or in part, any expense reasonably incurred by the person carrying on the undertaking in complying with the requirement, reduced by the value to that person of any materials derived from the demolished building or structure, or from the demolished part of the building or structure, as the case may be ; "

and as if, in sub-paragraph (4) thereof, any reference to the imposition of a requirement included a reference to anything which may be done by virtue of an order made under this Part of this Act.

(3) The foregoing provisions of this section as to the assessment of compensation shall not have effect—

- (a) in the case of the compulsory purchase of land, unless the appropriate Minister has, upon a representation made to him before the expiration of the time within

PART II.
—cont.

which objections may be made to the compulsory purchase order, certified that the land is in respect of its nature or situation of such a kind that it is comparable less with the generality of land than with land held for the purpose of the carrying on of statutory undertakings ;

(b) in the case of the creation of any easement over land or any other right in or in relation to land, unless the appropriate Minister has, upon a representation made to him before the expiration of the time within which objections may be made to the order providing for the creation of that easement or right, certified that the land in question is of such a kind as aforesaid ; and

(c) in the case of any direction which affects a building or structure, unless the appropriate Minister has, upon a representation made to him before the expiration of the time within which an application may be made to the court with respect to the direction in accordance with the provisions of Part II of the Third Schedule to this Act, certified that the building or structure is in respect of its nature or situation comparable less with the generality of buildings or structures than with buildings or structures held for the purpose of the carrying on of statutory undertakings.

(4) The provisions of the Fifth Schedule to this Act (being provisions substantially corresponding to sections twenty-six and twenty-seven of the Town and Country Planning Act, 1944) shall have effect for the purpose of making any adjustments of the functions of statutory undertakers which may be necessary in consequence of the provisions of this Part of this Act.

Exemptions
from stamp
duty.

34.—(1) Stamp duty shall not be payable on any conveyance of land, or on any instrument creating or disposing of any right in or in relation to land, being a conveyance or instrument to which the Minister of Civil Aviation is a party, if the Minister of Civil Aviation certifies that the duty would fall to be defrayed as part of his expenses.

(2) Stamp duty shall not be payable on any conveyance of land to which the Minister of Transport is a party, if the Minister of Transport certifies that the conveyance is made for the purpose of this Part of this Act, and that the duty would fall to be defrayed as part of his expenses.

Expenses of
Part II.

35.—(1) Any expenses incurred by the Minister of Transport in consequence of the passing of this Part of this Act shall, to such extent as the Treasury may direct, be defrayed by the Minister of Civil Aviation or by the Minister of Supply.

(2) Any expenses incurred by the Minister of Supply by reason of any such direction as aforesaid shall be defrayed out of moneys provided by Parliament.

PART II.
—cont.

(3) Except in so far as any expenses incurred by the Minister of Transport in consequence of the passing of this Part of this Act fall, by virtue of any such direction as aforesaid, to be defrayed by the Minister of Civil Aviation or the Minister of Supply, or fall to be defrayed out of the Road Fund under any other Act, they shall be defrayed out of moneys provided by Parliament.

(4) There shall be defrayed out of moneys provided by Parliament any such increase in the sums payable into the Road Fund out of moneys so provided as is attributable to the passing of this Part of this Act.

(5) Any expenses incurred by the Minister in consequence of the passing of this Part of this Act, and any additional sums which, in consequence of the passing of this Part of this Act, fall to be defrayed out of moneys provided by Parliament under the Fourth Schedule to the Town and Country Planning Act, 1944, shall be defrayed out of moneys provided by Parliament.

PART III.

GENERAL, MISCELLANEOUS AND SUPPLEMENTAL PROVISIONS.

Air Transport Advisory Council.

36.—(1) His Majesty may by Order in Council provide for the constitution of an Air Transport Advisory Council consisting of a chairman, who shall be appointed by the Lord Chancellor and who shall be a barrister, advocate or solicitor of not less than seven years' standing, and such number of members appointed by the Minister (not being less than two nor more than four) as may be determined in accordance with the Order.

Of the members of the Council appointed by the Minister, at least one shall be a person of experience in the operation of air transport services, and at least one shall be a person of experience in the operation of other transport services.

No member of any of the three corporations, and no person employed by any of the three corporations, shall be qualified to be a member of the Council.

(2) It shall be the duty of the Air Transport Advisory Council to consider any representation from any person with respect to the adequacy of the facilities provided by any of the three corporations, or with respect to the charges for any such facilities :

Provided that the Council shall not be required by this subsection to consider any such representation if, in their opinion, it is frivolous or vexatious or if, in their opinion, the matters to which the representation relates have been already sufficiently considered by the Council, or if, in their opinion, it is inexpedient

PART III.
—cont.

that they should consider the representation on the ground that the matters to which it relates are for the time being regulated by any international agreement to which His Majesty's government in the United Kingdom is a party.

(3) It shall be the duty of the Air Transport Advisory Council to consider any question which may be referred to the Council by the Minister, being :—

(a) a question relating to facilities for transport by air in any part of the world, or relating to the charges for such facilities ; or

(b) a question which in the opinion of the Minister requires consideration with a view to the improvement of air transport services.

(4) When the Council have considered any such representation or question as aforesaid, they shall report to the Minister upon their conclusions, and shall make such recommendations to the Minister in connection with those conclusions as they think expedient.

(5) The Council may with the approval of the Minister appoint such assessors as they think expedient for the purpose of securing that they are properly advised with respect to matters affecting the interests of persons who use air transport services, or of any class of such persons, and the interests of technical, professional, industrial and commercial bodies (including those of organised labour) directly concerned with the provision of air transport services.

(6) Any Order made under this section may contain such incidental and consequential provisions, including provisions for the payment of remuneration to members of the Council out of moneys provided by Parliament, provisions for the payment out of such moneys of expenses incurred in connection with the appointment of assessors by the Council, and provisions for determining the procedure of the Council, as His Majesty thinks expedient.

The procedure of the Council shall be such as to secure that no member of the Council shall sit to consider any representation or question which it is the duty of the Council to consider, if, in respect of the matters to which the representation or question relates, he has any special interest such as may tend to interfere with his impartial consideration of the representation or question.

(7) The Council shall be furnished by the Minister with such accommodation as appears to him to be requisite for the proper discharge of their functions, and with such clerks, officers and staff as appear to him, with the concurrence of the Treasury as to numbers, to be requisite for that purpose, and the Minister shall pay to the clerks, officers and staff of the Council such

remuneration as he may with the approval of the Treasury determine.

PART III.
—cont.

(8) The Minister shall provide the Council with such information and other assistance as he thinks expedient for the purpose of assisting the Council to discharge their functions; and each of the three corporations shall keep the Council informed of all services which are provided by them or which they intend to provide, and of the charges which the corporation make or propose to make for any such services.

(9) The Council shall make an annual report to the Minister of their proceedings, and the Minister shall lay the report before each House of Parliament together with a statement of any action which has been taken by him in consequence of any recommendations submitted to him by the Council during the period to which the report relates.

(10) The draft of any Order proposed to be made under this section shall not be submitted to His Majesty until it has lain before each House of Parliament for a period of forty days; and if within that period either House of Parliament resolves that the draft be not submitted to His Majesty, no further proceedings shall be taken thereon, but without prejudice to the laying before Parliament of a new draft.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Aerodromes.

37.—(1) The Minister may by order impose such prohibitions or restrictions on the use of any area of land or water as a place for the arrival and departure of civil aircraft as he thinks expedient for the purpose of securing that aircraft may arrive and depart with safety at any aerodrome vested in him or under his control: Power of Minister to prohibit or restrict use of civil aerodromes

Provided that nothing in this subsection shall authorise the imposition of any such prohibition or restriction in relation to tidal waters beyond those of the territorial waters of His Majesty's dominions which are adjacent to the United Kingdom.

(2) The provisions of Part I of the Third Schedule to this Act shall have effect in relation to any order made under this section other than an order for the imposition of prohibitions or restrictions on the use of water; and in the case of an order for the imposition of prohibitions or restrictions on the use of water—

(a) the Minister shall, before making the order, publish notice of his intention to make the order in such manner as he thinks best calculated to bring his intention to the notice of persons who will be affected thereby; and

PART III.
—cont.

(b) the Minister shall, immediately, after the order has been made, publish in one or more newspapers circulating in the district to which the order relates a notice stating that the order has been made and naming a place where a copy of the order may be seen at all reasonable hours, and shall serve a like notice upon any person who in his opinion will be affected thereby.

(3) The provisions of Part II of the Third Schedule to this Act and the provisions of the Sixth Schedule to this Act shall have effect with respect to orders under this section :

Provided that where any aerodrome was first established as such after the passing of this Act, no compensation shall be payable by reason of the imposition under this section of prohibitions or restrictions upon the use of that aerodrome unless it was so established with the consent of the Minister.

(4) Any person who contravenes the provisions of any such order shall be liable in respect of each offence—

(a) on summary conviction thereof to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and to such imprisonment ; and

(b) on conviction thereof on indictment, to a fine not exceeding one thousand pounds or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

(5) Any offence against any such order committed on tidal waters outside the ordinary jurisdiction of a court of summary jurisdiction may be tried and punished by such a court as if it had been committed in the nearest part of the United Kingdom which is within the ordinary jurisdiction of such a court.

(6) In this section the expression " aerodrome " includes part of an aerodrome.

Manage-
ment and
administration
of aerodromes.

38.—(1) In the management and administration of any aerodrome vested in him the Minister shall make such provision as he thinks necessary to ensure that adequate facilities for consultation are provided for the local authorities in whose areas the aerodrome or any part thereof is situated, and for other local authorities whose areas are in the neighbourhood of the aerodrome, and for other organisations representing the interests of persons concerned with the locality in which the aerodrome is situated.

(2) The Minister shall appoint for each such aerodrome an officer who shall be responsible to the Minister for all services provided on the aerodrome on behalf of the Minister, including signalling services, flying control services, and services connected with the execution of works.

39.—(1) Without prejudice to their general duties under any Act of Parliament or otherwise, it shall be the duty of the Minister of Health and the Minister of Civil Aviation to make such arrangements as they think necessary—

PART III.
—cont.
Sanitary
control
services at
aerodromes

- (a) for preventing danger to public health from aircraft arriving at any aerodrome vested in or under the control of the Minister of Civil Aviation ; and
- (b) for preventing the spread of infection by means of any aircraft leaving any such aerodrome, so far as may be necessary or expedient for the purpose of carrying out any treaty, convention, arrangement or engagement with any country.

(2) A local authority may, and shall if the Minister of Health so requires, undertake duties in connection with the execution of any such arrangements as aforesaid ; and the Minister of Health shall pay to a local authority such charges as the authority may reasonably require to be paid in respect of expenses incurred and services provided by the authority in the performance of such duties.

(3) Section one hundred and forty-three of the Public Health Act, 1936, (which empowers the Minister of Health to make regulations with a view to the treatment of certain diseases and for preventing the spread of such diseases) shall have effect in relation to aerodromes for the time being vested in or under the control of the Minister of Civil Aviation, and in relation to persons and aircraft arriving at or departing from such aerodromes, subject to the following modifications, that is to say—

- (a) in subsection (3) thereof, for the words “ shall specify the authorities, whether county councils, local authorities or port health authorities, by whom they are to be enforced and executed ” there shall be substituted the words “ may provide for their enforcement and execution by officers designated for that purpose by the Minister or the Minister of Civil Aviation ” ;
- (b) in subsection (4), for the words “ Authorised officers of any such authority ” there shall be substituted the words “ Officers so designated as aforesaid ”.

(4) Without prejudice to the generality of the powers conferred by the said section one hundred and forty-three, regulations made thereunder may provide for requiring persons alighting from aircraft to answer questions pertaining to their state of health or their contact with infection.

(5) In this section the expression “ local authority ” means any local authority for the purposes of the Public Health Act, 1936, and includes a county council and a port health authority, and includes also any joint board of which all the constituent authorities are local authorities within the meaning of the preceding provisions of this subsection.

PART III.
—cont.
Exclusion of
discrimination.

40. The Minister shall not provide any of the three corporations with aerodrome facilities in connection with the operation of any charter service unless he is satisfied that comparable facilities are available, or can be made available if required, to persons other than the three corporations in connection with the operation of a similar service, and are so available, or can be made so available if required, upon terms and conditions not less favourable than those upon which the facilities in question are provided by him for the corporation concerned.

In this section the expression "aerodrome facilities" means any facilities connected with the use of an aerodrome, and the expression "charter service" means any service provided on charter terms.

Miscellaneous provisions.

Terms and
conditions of
employment of
persons
employed by
air transport
undertakings.

41.—(1) The provisions of this section shall have effect for the purpose of securing that the terms and conditions of employment of persons employed by any independent undertaking constituted for the purpose of providing air transport services or of carrying out other forms of aerial work shall, except in so far as those terms and conditions—

- (a) are regulated by or under any enactment other than this section ; or
- (b) are in accordance with an agreement for the time being in force between the undertaking and organisations representative of the persons employed ; or
- (c) are in accordance with any decision for the time being in force of a joint industrial council representing the undertaking and organisations representative of the persons employed ;

comply with the following requirement, that is to say, that they shall not be less favourable than the terms and conditions observed by the three corporations in the case of persons engaged in comparable work, or, where the three corporations do not observe the same terms and conditions for persons engaged in comparable work, are not less favourable than the terms and conditions observed for such persons by at least one of those corporations.

(2) If any dispute arises as to whether the terms and conditions of any person's employment ought to comply with the requirement aforesaid, or as to what terms and conditions ought to be observed for the purpose of complying therewith, the dispute shall, if not otherwise disposed of, be referred by the Minister to the Industrial Court for settlement.

(3) Where any award has been made by the Industrial Court upon a dispute referred to that Court under this section, then, as from the date of the award or from such other date as the Court may direct, and subject to any subsequent variation or

PART III.
—cont.

revocation of the award, it shall be an implied term of the contract between the employer and workers to whom the award applies that the terms and conditions of employment to be observed under the contract shall be in accordance with the award, except in so far as they are regulated by or under any enactment other than this section or are in accordance with any such agreement or decision as is mentioned in subsection (1) of this section.

No direction given by the Court for the purposes of the preceding provisions of this subsection shall have the effect of making any award retrospective to a date earlier than the date on which the dispute to which the award relates first arose.

(4) Section twenty-seven of the Air Navigation Act, 1936, is hereby repealed.

(5) In this section the expression "independent undertaking" means any undertaking other than the three corporations.

42.—(1) The Minister shall by regulations provide for securing Compensation that where after the passing of this Act he acquires an aerodrome of officers. the following persons that is to say—

- (a) any person who immediately before the acquisition was employed by the aerodrome undertaking in full-time service wholly or mainly connected with the maintenance or use of the aerodrome ; and
- (b) any person who, having been employed by the aerodrome undertaking before the acquisition in such service as is mentioned in the preceding paragraph would have been within that paragraph but for any war service in which he has been engaged ;

shall, in such cases, to such extent and subject to such conditions as the Minister thinks proper, be entitled to receive compensation from the Minister for damage sustained by them in respect of their employment or their opportunities of re-employment, being damage attributable to the acquisition of the aerodrome.

(2) Regulations made under this section may include such incidental, consequential and supplemental provisions, including provisions with respect to the procedure for determining questions, as the Minister thinks expedient for the purposes of the regulations.

(3) No regulations shall be made under this section unless a draft of the regulations has been laid before Parliament and has been approved by resolution of each House of Parliament.

(4) In this section the expression "war service" means service in any of His Majesty's forces and such other employment as may be prescribed by regulations made under this section.

PART III.

—cont.
Recording and
registration
of births and
deaths, etc.

43.—(1) The Minister may by regulations provide for requiring such persons as may be specified in the regulations to keep records and make returns to him—

(a) of births and deaths occurring in any part of the world in any aircraft registered in Great Britain and Northern Ireland ; and

(b) of the death, outside the United Kingdom, of any person who, being a traveller on such an aircraft, is killed on the journey in consequence of an accident ;

and for the keeping in his Department of a record of any returns made to him in accordance with any such requirement as aforesaid.

Any person who fails to comply with any such requirement shall be liable on summary conviction to a fine not exceeding twenty pounds.

(2) Where any such regulations provide for the keeping of records in the Department of the Minister in accordance with the preceding subsection, they shall also provide for the transmission of certified copies of those records to the Registrar General of Births, Deaths and Marriages in England, the Registrar General of Births, Deaths and Marriages in Scotland, or the Registrar General for Northern Ireland, as the case may require.

(3) The Registrar General to whom any such certified copies are sent shall cause them to be filed and preserved in a book to be kept by him for the purpose, and to be called the Air Register Book of Births and Deaths.

(4) Regulations made under subsection (1) of this section shall provide for the rectification of any records kept in the Department of the Minister in pursuance of the regulations and for the transmission of certified copies of any corrected entry in the records to the Registrar General of Births, Deaths and Marriages in England, the Registrar General of Births, Deaths and Marriages in Scotland, or the Registrar General for Northern Ireland, as the case may require.

(5) The Registrar General to whom a certified copy of any such corrected entry is sent in accordance with the regulations shall cause the corrected entry to be substituted for the corresponding entry for the time being made in the Air Register Book of Births and Deaths.

(6) The enactments relating to the registration of births and deaths in England, Scotland and Northern Ireland shall have effect as if the Air Register Book of Births and Deaths were a certified copy or duplicate register transmitted to the Registrar General in accordance with those enactments.

(7) The Minister may by regulations provide—

(a) for the keeping in his Department of a record of persons reported to him as missing, being persons with respect

to whom there are reasonable grounds for believing that they have died in consequence of an accident to an aircraft registered in Great Britain and Northern Ireland ;

PART III.
—*cont.*

- (b) for the rectification of any such record ; and
- (c) for the transmission of information as to the matters for the time being entered on the record to the Registrar General of Births, Deaths and Marriages in England, the Registrar General of Births, Deaths and Marriages in Scotland or the Registrar General for Northern Ireland, as the case may require.

44.—(1) Any two justices of the peace may appoint such persons as may be nominated for the purpose by the Minister to be special constables on any premises for the time being vested in the Minister or under his control. Power to appoint special constables

(2) Every person so appointed shall be sworn in by the justices duly to execute the office of a constable on the premises aforesaid, and when so sworn in shall, on those premises, have the powers and privileges and be liable to the duties and responsibilities of a constable.

(3) Special constables appointed under this section shall be under the exclusive control of the Minister, and the Minister shall have power to suspend or terminate the appointment of any such special constable.

45. The Minister may by regulations make provision for securing the safe custody and re-delivery of any property which, while not in proper custody, is found on any premises belonging to him or under his control, or on any premises occupied by any of the three corporations or in any aircraft on any such premises ; and any such regulations may in particular— Custody and disposal of lost property.

- (a) provide for requiring charges to be paid in respect of any such property before it is re-delivered ; and
- (b) provide for authorising the disposal of any such property if it is not re-delivered before the expiration of such period as may be specified in the regulations.

46. In sub-paragraph (2) of paragraph 7 of the Third Schedule Amendment to the Air Navigation Act, 1936 (which relates to deposits in respect of third party risks), for the words " Secretary of State " there shall be substituted the words " Minister of Civil Aviation " of 26 Geo. 5. & 1 Edw. 8. c. 44.

Supplemental.

47.—(1) Proceedings for an offence against this Act shall not, in England, be instituted except by or with the consent of the Minister or by or with the consent of the Director of Public Prosecutions. Provisions as to offences.

PART III.
—cont.

(2) Where an offence against this Act has been committed by a body corporate, every person who at the time of the commission of the offence was a director, general manager, secretary or other similar officer of the body corporate, or was purporting to act in any such capacity, shall be deemed to be guilty of that offence, unless he proves that the offence was committed without his consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

Registration
of certain
orders in the
register of
local land
charges.

48.—(1) As soon as may be after any of the following instruments, that is to say—

- (a) an order under section twenty-seven of this Act ;
- (b) an order under section twenty-nine of this Act or any direction given under such an order ; or
- (c) an order under section thirty-seven of this Act, other than an order for the imposition of prohibitions or restrictions on the use of water ;

becomes operative, it shall be registered in the prescribed manner in the register of local land charges by the proper officer of any local authority in whose area the land to which the instrument relates, or any part of that land, is situated.

In this subsection the expression “local authority” means the council of a county and the council of a county borough.

(2) As soon as may be after such an instrument has become operative it shall be the duty of the Minister to notify that fact to the proper officer of the local authority by whom the instrument is required to be registered as aforesaid, and to furnish to him all necessary information relating to the instrument.

15 & 16 Geo. 5.
c. 22.

(3) The power conferred by subsection (6) of section fifteen of the Land Charges Act, 1925, to make rules for giving effect to the provisions of that section shall be exercisable for giving effect to the provisions of this section, and in this section the expression “prescribed” means prescribed by rules made in the exercise of that power.

Notices.

49.—(1) Any notice required to be served on any person for the purposes of this Act may be served on him either by delivering it to him, or by leaving it at his proper address, or by post, so however that the notice shall not be duly served by post unless it is sent by registered letter.

(2) Any such notice required to be served upon an incorporated company or body shall be duly served if it is served on the secretary or clerk of the company or body.

52 & 53 Vict.
c. 63.

(3) For the purposes of this section and of section twenty-six of the Interpretation Act, 1889, the proper address of any person upon whom any such notice as aforesaid is to be served shall,

in the case of the secretary or clerk of any incorporated company or body, be that of the registered or principal office of the company or body, and in any other case be the last known address of the person to be served :

PART III.
—cont.

Provided that where the person to be served has furnished an address for service, his proper address for the purposes aforesaid shall be the address furnished.

(4) If it is not practicable after reasonable inquiry to ascertain the name or address of any owner, lessee or occupier of land on whom any such notice as aforesaid is to be served, the notice may be served by addressing it to him by the description of "owner", "lessee" or "occupier" of the land (describing it) to which the notice relates, and by delivering it to some person on the premises, or, if there is no person on the premises to whom it can be delivered, by affixing it, or a copy of it, to some conspicuous part of the premises.

50. Any power conferred by this Act to make any Order in Variation and Council or order shall be construed as including a power, exercisable of orders. revocation in the like manner and subject to the like conditions, if any, to vary or revoke the Order in Council or order.

51.—(1) In this Act, except where the context otherwise Interpretation. requires or where it is otherwise expressly provided, the following expressions have the meanings hereby respectively assigned to them, that is to say—

- "aerodrome" means any area of land or water designed, equipped, set apart or commonly used for affording facilities for the landing and departure of aircraft ;
- "air transport service" means a service for the carriage by air of passengers, mails or other freight ;
- "appropriate Minister" has the meaning assigned to it by Part III of the Fifth Schedule to this Act ;
- "associate", in relation to any of the three corporations, has the meaning assigned to it by section fourteen of this Act ;
- "director" includes any person occupying the position of director, by whatever name called ;
- "financial year", in relation to any of the three corporations, means a period of twelve months beginning on the first day of April ;
- "land" includes any estate or other interest in land and any easement ;
- "local authority" means the council of a county, county borough, metropolitan borough or county district, or the Common Council of the City of London ;

PART III.
—cont.

“owner”, in relation to any land, means a person, other than a mortgagee not in possession, who is for the time being entitled to dispose of the fee simple of the land, whether in possession or in reversion, and includes also a person holding or entitled to the rents and profits of the land under a lease or agreement, the unexpired term whereof exceeds three years ;

“remuneration” includes reasonable allowances in respect of expenses properly incurred in the performance of the duties of any office ;

“revenue”, in relation to any of the three corporations, includes grants made by the Minister to the corporation under this Act ;

“scheduled journey” has the meaning assigned to it by section twenty-three of this Act ;

“subsidiary”, in relation to any of the three corporations, means any undertaking more than one half of the issued share capital whereof is held directly or through a nominee by the corporation, and any undertaking in relation to which the corporation have a power directly or indirectly to appoint the majority of the directors ;

“statutory undertaker” means any person (including a local authority) authorised by any Act (whether public general or local), or by any order or scheme made under or confirmed by any Act, to construct, work or carry on any railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking, or any undertaking for the supply of electricity, gas, hydraulic power or water, and the expression “statutory undertaking” shall be construed accordingly.

(2) Any reference in this Act to the carrying out of works on land shall be construed as including a reference to the making of excavations on the land or to the carrying out of levelling operations on the land, and references to the maintenance of works or to interference with works shall be construed accordingly.

(3) References in this Act to any enactment shall be construed as including references to that enactment as amended by or under any other enactment, including this Act.

Application
to Scotland.

52. This Act shall, in its application to Scotland, have effect subject to the following modifications—

(a) for any reference to an easement there shall be substituted a reference to a servitude ;

(b) in subsection (6) of section twenty-six, after the words “the grant or agreement shall”, there shall be inserted the words “on being recorded in the appropriate register of sasines” ;

(c) in section twenty-eight—

- (i) for paragraph (b) of subsection (2) there shall be substituted the following paragraph—

“ (b) for directing that any highway to be provided or improved in pursuance of the order shall be maintained and managed by a county or town council, and for specifying the council which is to be responsible for such maintenance and management ; ”

(ii) in subsection (4) for references to the First Schedule to the Statutory Orders (Special Procedure) Act, 1945, and to paragraph 1 thereof, there shall be substituted respectively references to section two of that Act as it applies to Scotland and to subsection (1) of that section, and the words from “ In this subsection ” to the end of the subsection shall be omitted ;

- (d) in subsection (5) of section twenty-nine, the words from “ Notwithstanding ” to the end of the subsection shall be omitted ;

- (e) in subsection (1) of section thirty, for the reference to section twenty-eight of the Town and Country Planning Act, 1944, there shall be substituted a reference to section twenty-seven of the Town and Country Planning (Scotland) Act, 1945 ; and for the words “ refer- 8 & 9 Geo. 6.
ences in subsection (3) of that section to ‘ the Minister ’ ” c. 33.
there shall be substituted the words “ references in subsection (2) of that section to the Secretary of State ” ;

- (f) in subsection (2) of section thirty-two, for the words from “ whatever,” to the end of the subsection there shall be substituted the words “ at any time after the tenancy has expired or has been determined, the Minister may serve a notice on the occupier of the building or part of the building requiring him to remove therefrom within a period of twenty-one days ; and on the expiry of that period a certified copy of the notice to remove shall be sufficient warrant for ejection against the occupier or any party in his right in the event of non-compliance with the notice ” ;

- (g) in sections thirty-three and thirty-five, for references to the Town and Country Planning Act, 1944, to section twenty-five and to sections twenty-six and twenty-seven thereof, to the Fourth Schedule thereto, to Part II and paragraph 2 of that Schedule and to sub-paragraphs (1) and (4) of the said paragraph, there shall be substituted respectively references to the Town and Country Planning (Scotland) Act, 1945, to section twenty-four

PART III.
—*cont.*

and to sections twenty-five and twenty-six thereof, to the Fourth Schedule thereto, to Part II and paragraph 2 of that Schedule and to sub-paragraphs (1) and (4) of the said paragraph ;

(h) nothing in subsection (5) of section thirty-seven of this Act shall be construed as conferring jurisdiction on any court of summary jurisdiction other than the sheriff court ;

(i) in section thirty-nine—

(i) for any reference to the Minister of Health there shall be substituted a reference to the Secretary of State, and for any reference to section one hundred and forty-three of the Public Health Act, 1936, there shall be substituted a reference to section one of the Public Health (Scotland) Act, 1945 ;

(ii) for paragraph (a) of subsection (3) there shall be substituted the following paragraph :—

“(a) in subsection (3) thereof for the words ‘shall specify the authorities, whether local authorities or port local authorities, by whom they are to be enforced and executed’ there shall be substituted the words ‘may provide for their enforcement and execution by officers designated for that purpose by the Secretary of State or the Minister of Civil Aviation’;” and

(iii) for subsection (5) there shall be substituted the following subsection—

“(5) In this section the expression ‘local authority’ means a local authority for the purposes of the Public Health (Scotland) Act, 1945, and includes a port local authority as defined in section one hundred and seventy-two of the Public Health (Scotland) Act, 1897” ;

(j) in section forty-four references to two justices of the peace shall be construed as references to the magistrates of a burgh or to the council of a county, as the case may be, and references to swearing in shall be construed as references to making a declaration in the form and manner prescribed in section seventy-nine of the Burgh Police (Scotland) Act, 1892, and section eleven of the Police (Scotland) Act, 1857, respectively ;

(k) for section forty-eight there shall be substituted the following section—

“48. As soon as may be after any of the following instruments, that is to say—

(a) an order under section twenty-seven of this Act ;

9 & 10 Geo. 6.
c. 15

60 & 61 Vict.
c. 38.

55 & 56 Vict.
c. 55.
20 & 21 Vict.
c. 72.

- (b) an order under section twenty-nine of this Act, or a direction given under any such order ; or
- (c) an order under section thirty-seven of this Act, other than an order for the imposition of prohibitions or restrictions on the use of water ;

becomes operative, it shall be recorded in the appropriate register of sasines, and on being so recorded shall be enforceable against any person having or subsequently acquiring any estate or interest in the land to which the order or direction relates ” ;

- (l) in section fifty-one, for the definitions of the expressions “ local authority ” and “ owner ” there shall be substituted respectively the following definitions :—

“ ‘ local authority ’ means any county or town council ” ;

“ ‘ owner ’ in relation to any land includes any person who under the Lands Clauses Acts would be enabled to sell and convey the land to the promoters of an undertaking and includes also a lessee under a lease the unexpired period of which exceeds three years ” ;

- (m) any inquiry in relation to an order, which by virtue of any provision of this Act is subject to special parliamentary procedure, shall, if the Minister so directs, be held by Commissioners under the Private Legislation Procedure (Scotland) Act, 1936, and where any direction has been so given—

26 Geo. 5. &
1 Edw. 8. c. 52.

(i) it shall be deemed to have been so given under section two as read with section ten of the Statutory Orders (Special Procedure) Act, 1945 ; and

(ii) nothing in section fifty of the Town and Country Planning (Scotland) Act, 1945, as applied under paragraph 4 or paragraph 8 of the Fifth Schedule to this Act shall apply to such inquiry ;

- (n) any provision contained in this Act requiring notice to be served on the owners, lessees or occupiers of any land shall be deemed to be complied with if notice is served on all the persons appearing from the valuation roll to have an interest in the land, and any reference in this Act to owners, lessees or occupiers shall be construed accordingly. Service of a notice on a person so appearing to have an interest may be effected by sending the notice in a registered letter addressed to him at his address as entered in the valuation roll.

PART III.
—*cont.*
Application
to Northern
Ireland.

53.—(1) This Act shall, in its application to Northern Ireland, have effect subject to the modifications specified in the succeeding provisions of this section.

(2) The reference in subsection (2) of section nineteen of this Act to the Minister of Labour and National Service shall, in relation to any agreement affecting employment in Northern Ireland, be construed as including a reference to the Ministry of Labour and National Insurance for Northern Ireland.

(3) For the purpose of the compulsory purchase by the Minister, under section twenty-six of this Act, of land in Northern Ireland, His Majesty may by Order in Council provide for extending the Acquisition of Land (Authorisation Procedure) Act, 1946, to Northern Ireland subject to any adaptations, modifications and exceptions which may be provided for by the Order.

(4) Subsection (7) of section twenty-seven of this Act shall not extend to Northern Ireland.

(5) The powers exercisable by the Minister of Transport under section twenty-eight of this Act shall, as regards land in Northern Ireland, be exercisable by the Ministry of Commerce for Northern Ireland; and accordingly the references to the Minister of Transport in that section, and in subsection (4) of section thirty-two of this Act, and in subsection (2) of section thirty-four of this Act shall, in relation to land in Northern Ireland, be construed as references to the Ministry of Commerce for Northern Ireland :

Provided that the said section twenty-eight shall, in its application to Northern Ireland as aforesaid, have effect as if—

(a) for the words "repairable by the inhabitants at large" in paragraph (b) of subsection (2) thereof there were substituted the words "maintainable at the cost of a county or county district as the case may be" ;

(b) sub-paragraph (ii) of paragraph (f) of subsection (2) were omitted from the said section ;

(c) subsection (4) were omitted from the said section ;

(d) the following subsection were substituted for subsection (6) of the said section—

" (6) The powers of compulsory acquisition of land exercisable by the Ministry of Commerce for Northern Ireland under subsection (3) of section two of the Roads Act (Northern Ireland), 1937, shall include the power to acquire lands compulsorily, in accordance with the provisions of the said subsection, for the purpose of providing or improving any highway which is to be provided or improved in pursuance of an

order under subsection (1) of this section, or for any other purpose for which land is required in connection with such an order, and the said Act shall have effect accordingly.

PART III.
—cont.

The powers conferred on the said Ministry by this subsection shall be exercisable in relation to any land notwithstanding that such land is the property of a statutory undertaker or is declared by any other enactment to be inalienable ”.

(6) Subsection (4) of section twenty-nine of this Act and sections thirty and thirty-three thereof shall not extend to Northern Ireland, and subsection (5) of the said section twenty-nine shall have effect as if the words from “Notwithstanding,” to the end of the subsection were omitted.

(7) For the purposes of the application of section thirty-two of this Act to Northern Ireland, the reference in subsection (2) of that section to the Small Tenements Recovery Act, 1838, shall be construed as a reference to Part IV of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland) 1935.

(8) For the purposes of section six of the Government of 10 & 11 Geo. 5. Ireland Act, 1920 (which relates to the power of the Parliament c. 67. of Northern Ireland to make laws), section thirty-four of this Act shall be deemed to be a provision of an Act passed before the appointed day.

(9) The reference in subsection (1) of section thirty-five of this Act to the expenses incurred by the Minister of Transport shall be construed as including a reference to any expenses incurred by the Ministry of Commerce of Northern Ireland in consequence of the passing of Part II of this Act.

(10) Section thirty-nine of this Act shall, in so far as it relates to aerodromes in Northern Ireland, have effect as if—

- (a) for the reference in subsections (1) and (2) thereof to the Minister of Health there were substituted a reference to the Ministry of Health and Local Government for Northern Ireland ;
- (b) the reference in subsection (2) thereof to a local authority included a reference to such authority as the Ministry of Health and Local Government for Northern Ireland may designate as the appropriate authority for the purposes of the said section ;
- (c) for subsection (3) of the said section the following subsection were substituted—

“ (3) His Majesty may by Order in Council direct that section one hundred and forty-three of the Public Health Act, 1936, so far as it relates to such regulations

PART III.
—cont.

as are specified in subsection (9) thereof, shall apply in relation to aerodromes in Northern Ireland for the time being vested in or under the control of the Minister of Civil Aviation, and in relation to persons and aircraft arriving at or departing from such aerodromes, subject to such exceptions, modifications and adaptations as may be specified in the Order ” ;

(d) subsection (5) were omitted from the said section.

(11) Section forty-seven of this Act shall have effect as if for subsection (1) thereof the following subsection were substituted—

“ (1) Proceedings for an offence against this Act shall not, in Northern Ireland, be instituted except by or with the consent of the Minister, or by the Attorney-General for Northern Ireland.”

(12) Section forty-eight of this Act shall not extend to Northern Ireland :

Provided that where any such instrument as is mentioned in subsection (1) of that section adversely affects land in Northern Ireland, then—

54 & 55 Vict.
c. 66.

(a) if the land is registered land to which the Local Registration of Title (Ireland) Act, 1891, applies, the instrument on the lodgment by the Minister of a copy thereof with the registrar of titles, shall, notwithstanding anything in the said Act or rules made thereunder be registered as a burden affecting the land and created after the first registration of the land, and may be so registered without the concurrence of the registered owner of the land or the production of the land certificate, without prejudice, however, to the power of the registering authority to order the production of the land certificate under subsection (2) of section eighty-one of the said Act ; and

(b) if the land is not registered land to which the said Act applies, the instrument shall, on lodgment by the Minister of a copy thereof with the Registrar of Deeds for Northern Ireland, be registered in the Registry of Deeds, Northern Ireland, as an instrument affecting the lands to which the instrument relates.

(13) Any reference in this Act to the Acquisition of Land (Assessment of Compensation) Act, 1919, shall be construed as a reference to that Act as it has effect in Northern Ireland.

(14) Any reference in this Act to an Act of Parliament shall be construed as including a reference to an Act of the Parliament of Northern Ireland; and in this Act the expression "enactment" includes an enactment of that Parliament.

PART III.
—cont.

(15) In section fifty-one, for the definition of the expression "owner," there shall be substituted the following definition:

"owner", in relation to any land, includes any person who under the Lands Clauses Acts would be enabled to sell and convey the land to the promoters of an undertaking, and includes also a lessee under a lease the unexpired period of which exceeds three years.

(16) The expression "summary conviction" means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act amending that Act. 14 & 15 Vict. c. 93.

54. Any expenses incurred by the Minister, the Minister of Health or the Secretary of State for the purposes of the preceding provisions of this Part of this Act shall be defrayed out of moneys provided by Parliament. Expenses of Part III.

55.—(1) His Majesty may by Order in Council direct—

(a) that any of the provisions of this Act, except subsection (3) of section thirty-nine thereof;

Application
to Channel
Islands and
Isle of Man.

(b) that any regulations made under section one hundred and forty-three of the Public Health Act, 1936, as that section has effect by virtue of this Act in relation to aerodromes for the time being vested in or under the control of the Minister of Civil Aviation, and in relation to persons and aircraft arriving at or departing from such aerodromes;

shall extend, with such exceptions, modifications and adaptations, if any, as may be specified in the Order, to any of the Channel Islands or to the Isle of Man.

For the purposes of paragraph (b) of this subsection, subsections (4) and (5) of the said section one hundred and forty-three shall be deemed to form part of the regulations mentioned in that paragraph.

(2) Any such Order in Council may provide for the payment of sums out of moneys provided by Parliament for any purpose for which sums are required to be so paid in consequence of the exercise of the powers conferred by the preceding subsection.

56. This Act may be cited as the Civil Aviation Act, 1946. Short title.

SCHEDULES.

Sections 1 and
25.

FIRST SCHEDULE

SUPPLEMENTARY PROVISIONS AS TO THE THREE CORPORATIONS.

Tenure and Vacation of Office.

1. Subject as hereinafter provided, a member of the corporation shall hold and vacate office as such in accordance with the terms of the instrument appointing him to be a member :

Provided that—

- (a) where a member becomes or ceases to be chairman or deputy chairman of the corporation, the Minister may vary the terms of the instrument appointing him to be a member of the corporation, so far as they relate to the date on which he is to vacate office as such ; and
- (b) a member of the corporation may at any time, by notice in writing under his hand addressed to the Minister, resign his membership.

2. Subject as hereinafter provided, the chairman of the corporation and the deputy chairman of the corporation shall hold and vacate office as such in accordance with the instruments respectively appointing them :

Provided that the chairman or deputy chairman may at any time, by a notice in writing under his hand addressed to the Minister, resign his office as such.

3. If the chairman or deputy chairman of the corporation ceases to be a member of the corporation, he shall cease to be chairman or deputy chairman, as the case may be.

4. A member of the Commons House of Parliament shall not be appointed a member of the corporation.

5. If the Minister is satisfied that a member of the corporation—

- (a) has been absent from meetings of the corporation for a period longer than three consecutive months without the permission of the corporation ; or
- (b) has become bankrupt or made an arrangement with his creditors ; or

(c) is incapacitated by physical or mental illness ; or

(d) is otherwise unable or unfit to discharge the functions of a member ;

1ST SCH.
—cont.

the Minister may declare his office as a member of the corporation to be vacant and shall notify the fact in such manner as the Minister thinks fit ; and thereupon the office shall become vacant.

6. A member of the corporation who ceases to be a member shall be eligible for re-appointment.

7. The validity of any proceeding of the corporation shall not be affected by any vacancy amongst the members thereof, or by any defect in the appointment of a member thereof.

The Deputy Chairman.

8. Where by any provision of this Act the Minister is required to consult with the chairman of the corporation before exercising any power, and either :—

(a) the office of chairman of the corporation is vacant ; or

(b) by reason of illness, absence or any other cause the chairman is not available,

the Minister may comply with that requirement by consulting with the deputy chairman of the corporation before exercising the power.

Remuneration.

9. The corporation shall pay to each member thereof, in respect of his office as such, such remuneration as may be determined by the Minister with the consent of the Treasury, and shall pay to the chairman and deputy chairman thereof, in respect of his office as such, such remuneration (in addition to any remuneration to which he may be entitled in respect of his office as a member) as may be so determined.

10. If any member of the corporation, other than the chairman or deputy chairman thereof, is employed about the affairs of the corporation otherwise than as a member thereof, the corporation may pay to that member such remuneration (in addition to any remuneration to which he may be entitled in respect of his office as a member) as the corporation may determine.

Meetings and proceedings.

11. The quorum of the corporation and the arrangements relating to meetings thereof shall be such as the corporation may determine.

The common seal.

12. The corporation shall have a common seal, and the fixing of the seal shall be authenticated by the signatures of—

(a) the chairman of the corporation, or some other member thereof authorised either generally or specially by the corporation to act in his stead for that purpose ; and

(b) some other person authorised by the corporation, either generally or specially, to act for that purpose.

1ST SCH
—cont.*Instruments of the corporation.*

13. Any contract or instrument which, if entered into or executed by a person not being a body corporate, would not be required to be under seal, may be entered into or executed on behalf of the corporation by any person generally or specially authorised by them for that purpose.

14. Any document purporting to be a document duly executed under the seal of the corporation shall be received in evidence and shall, unless the contrary is proved, be deemed to be a document so executed.

Power to hold land.

15. The corporation shall have power to hold land for the purposes of their functions without licence in mortmain.

Section 25.

SECOND SCHEDULE.

PROVISIONS OF THE BRITISH OVERSEAS AIRWAYS ACT, 1939,
WHICH ARE TO CEASE TO HAVE EFFECT.

In subsection (2) of section one, the proviso.

Subsections (4) to (7) of section one.

Sections two to seven.

In subsection (2) of section thirteen, the words "under this Act".

Section fifteen.

Subsections (3) and (5) of section sixteen.

Sections seventeen to twenty-six.

Section twenty-eight.

Section thirty-one.

Sections thirty-three to thirty-seven.

The First, Second and Fifth Schedules.

Paragraph 6 of Part I of the Sixth Schedule, and paragraph 7 of Part II of that Schedule.

Sections 27 and
37, and 4th and
6th Schedule.

THIRD SCHEDULE.

PROVISIONS RELATING TO CERTAIN ORDERS

PART I.

1. Before making the order, the Minister:—

(a) shall publish in one or more newspapers circulating in the district in which the land is situated; and

- (b) shall serve on every owner, lessee and occupier of any of the land and upon every local authority within whose area any of the land is situated;

a notice stating that the Minister proposes to make the order and the effect thereof, and specifying the time (not being less than twenty-eight days from the service of the notice) within which, and the manner in which, objections to the making of the order may be made.

2. If no objection is duly made by any such local authority, owner, lessee or occupier as aforesaid or if all objections so made are withdrawn, the Minister may, if he thinks fit, make the order.

3. If any objection duly made as aforesaid is not withdrawn, the Minister shall, before making the order, either cause a public local inquiry to be held or afford to any person by whom any objection has been duly made as aforesaid and not withdrawn an opportunity of appearing before and being heard by a person appointed by the Minister for the purpose, and after considering the objection and the report of the person who held the inquiry or the person appointed as aforesaid, may, if he thinks fit, make the order.

4. Notwithstanding anything in the two last foregoing paragraphs, the Minister may require any person who has made an objection to state in writing the grounds thereof, and may disregard the objection for the purposes of those paragraphs if he is satisfied that the objection relates exclusively to matters which can be dealt with by the tribunal by whom the compensation is to be assessed.

5. Immediately after the order has been made, the Minister shall publish in one or more newspapers circulating in the district in which the land is situated a notice stating that the order has been made, and naming a place where a copy of the order may be seen at all reasonable hours, and shall serve a like notice on every person who, having duly objected to the order, has not withdrawn his objection.

PART II.

6. If any person aggrieved by the order desires to question the validity thereof, or of any provision contained therein, on the ground that it is not within the powers of the Minister or that any requirement of this Act has not been complied with in relation to the order, he may, within six weeks from the time when notice that the order has been made is first published in accordance with the requirements of this Act, make an application to the High Court; and on any such application the Court—

- (a) may by interim order suspend the operation of the order or of any provision contained therein, either generally or in so far as it affects the applicant, until the final determination of the proceedings; and
- (b) if satisfied that the order or any provision contained therein is not within the powers of the Minister, or that the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with.

3RD SCH.
—cont

may quash the order or any provision contained therein, either generally or in so far as it affects the applicant.

7. Subject to the provisions of the last foregoing paragraph, the order shall not, either before or after it has been made, be questioned in any legal proceedings whatsoever, and shall become operative on the expiration of six weeks from the date on which notice of the making of the order is first published in accordance with the requirements of this Act.

8. This Part of this Schedule shall not apply to an order which is confirmed by Act of Parliament under section six of the Statutory Orders (Special Procedure) Act, 1945, but except as aforesaid shall have effect in relation to an order to which that Act applies as if in paragraph 6, for the reference to the time when notice that the order has been made is first published in accordance with the requirements of this Act, there were substituted a reference to the time when the order becomes operative under the said Act of 1945, and as if in paragraph 7 the words from "and shall become operative" to the end were omitted.

PART III.

9. Any person having an interest in land the value of which is diminished in consequence of the coming into operation of the order shall be entitled to recover compensation from the Minister for the diminution, and the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall have effect accordingly.

8 & 9 Vict. c. 18. 10. Where the order comes into operation during the period of five years beginning with the seventeenth day of November, nineteen hundred and forty-four, section fifty-seven of the Town and Country Planning Act, 1944, shall have effect in relation to any compensation payable by virtue of the last preceding paragraph as if it were compensation under section sixty-eight of the Lands Clauses Consolidation Act, 1845, for damage sustained, during the said period, by reason of the land being injuriously affected by the execution of works upon other land acquired by a government department in pursuance of a notice to treat served during that period.

8 & 9 Geo. 6.
c. 43. 11. Where the order comes into operation before the expiration of two years from the end of the war period, Part VIII of the Requisitioned Land and War Works Act, 1945 (which provides for adjustments of compensation for the purpose of eliminating changes in value due to the exercise of emergency powers) shall apply in relation to any compensation payable under the preceding provisions of this Schedule as it applies where compensation is payable on the acquisition of an easement over land by virtue of Part II of that Act:

Provided that for the purposes of this paragraph subsection (5) of section forty-one of the said Act of 1945 shall have effect as if for the reference therein to the date of the notice to treat there were substituted a reference to the date on which the order comes into operation.

In this paragraph the expression "war period" has the same meaning as it has in section forty of the said Act of 1945.

12. Where any interest in land is subject to a mortgage—

3RD SCH
—cont.

- (a) any compensation payable under the preceding provisions of this Schedule in respect of the diminution in the value of the interest shall be assessed as if the interest were not subject to the mortgage;
- (b) a claim for any such compensation may be made by any mortgagee of the interest, but without prejudice to the making of a claim by the person entitled to the interest;
- (c) a mortgagee shall not be entitled to claim compensation under the said provisions in respect of his interest as such; and
- (d) the compensation payable in respect of the interest subject to the mortgage may be paid by the Minister to such of the claimants as he thinks proper, and shall be applied by that claimant in such manner as the parties interested may agree, or, in default of such agreement, as may be determined by arbitration.

In this paragraph the expression " mortgage " includes an equitable charge and any other encumbrance, and includes a sub-mortgage, and the expression " mortgagee " shall be construed accordingly.

13. Where the order provides for the creation of any easement over land held by a statutory undertaker for the purposes of the carrying on of his undertaking, or of any right in or in relation to such land, the undertaker shall be entitled to recover compensation from the Minister in accordance with the special provisions of Part II of this Act relating to statutory undertakers in any case in which those provisions apply, and shall not, in any such case, be entitled to recover compensation under the preceding paragraphs of this Schedule.

PART IV.

14. In the application of this Schedule to Scotland—

- (a) for any reference to the High Court there shall be substituted a reference to the Court of Session;
- (b) in paragraph 8, for the words " section six of the Statutory Orders (Special Procedure) Act, 1945," there shall be substituted the words " subsection (4) of section two as read with section ten of the Statutory Orders (Special Procedure) Act, 1945, or under section six of that Act";
- (c) for references to section fifty-seven of the Town and Country Planning Act, 1944, and to section sixty-eight of the Lands Clauses Consolidation Act, 1845, there shall be substituted respectively references to section fifty-three of the Town and Country Planning (Scotland) Act, 1945, and to section six of the Railways Clauses Consolidation (Scotland) Act, 1845; 8 & 9 Vict. c. 33. and
- (d) for references to a mortgage and to a mortgagee there shall be substituted respectively references to a heritable security and to a creditor in a heritable security; and in paragraph 12 for the words from " In this paragraph " to the end of the paragraph there shall be substituted the words—

3RD SCH.

—cont.

14 & 15 Geo. 5.

c 27

"In this paragraph the expression 'heritable security' means a heritable security within the meaning of the Conveyancing (Scotland) Act, 1924, exclusive of a security by way of ground annual and a real burden *ad factum praestandum*, but inclusive of a security constituted by *ex facie absolute disposition*."

15. This Schedule shall, in its application to Northern Ireland, have effect as if for the reference to the High Court there were substituted a reference to the High Court of Justice in Northern Ireland, and as if paragraphs 10 and 13 were omitted therefrom.

Section 29 and
6th Schedule.

FOURTH SCHEDULE.

PROVISIONS RELATING TO DIRECTIONS UNDER SECTION TWENTY-NINE OF THIS ACT.

PART I.

1. Immediately after the Minister has given the direction, he shall publish in one or more newspapers circulating in the district a notice stating that the direction has been given, and shall also serve notice of the direction—

- (a) in the case of a direction given for the purpose specified in paragraph (c) of subsection (2) of section twenty-nine of this Act, upon every owner, lessee and occupier of any land to which the right of way is appurtenant, and upon every local authority in whose area any of that land is situated ;
- (b) in the case of a direction given for any other purpose specified in the said subsection, upon every owner, lessee and occupier of the land to which the direction relates and upon every local authority in whose area any of that land is situated ;
- (c) in the case of a direction restricting the installation of apparatus or extinguishing rights to instal or maintain apparatus, upon every person whose rights to instal or maintain apparatus are affected by the direction ; and
- (d) in the case of a direction requiring the removal of any apparatus, upon the person entitled to maintain the apparatus required to be removed under the direction.

Any notice given with respect to any direction for the purpose of complying with the requirements of this paragraph shall state the effect of the direction.

2. The provisions of Part II of the Third Schedule to this Act shall, with the necessary modifications, have effect in relation to the direction as they have effect in relation to orders made under section twenty-seven of this Act.

PART II.

4TH SCH.
—cont

3. Any person having an interest in land the value of which is diminished in consequence of the coming into operation of the direction shall be entitled to recover compensation from the Minister for the diminution.

4. Where the direction comes into operation during the period of five years beginning with the seventeenth day of November, nineteen hundred and forty-four, section fifty-seven of the Town and Country Planning Act, 1944, shall have effect in relation to any compensation payable by virtue of the last preceding paragraph as if it were compensation under section sixty-eight of the Lands Clauses Consolidation Act, 1845, for damage sustained, during the said period, by reason of the land being injuriously affected by the execution of works upon other land acquired by a government department in pursuance of a notice to treat served during that period.

5. Where compensation is payable under the preceding provisions of this Schedule as a result of the total or partial demolition of a building or structure, and is payable in respect of an interest in that building or structure, then, if the compensation is assessed in accordance with the last preceding paragraph, the provisions of sections fifty-eight, fifty-nine and sixty of the Town and Country Planning Act, 1944 (which provide for supplements to compensation) shall have effect as if the compensation were compensation for the purchase by the Minister of the interest in question, and were assessed subject to the rule set out in subsection (1) of section fifty-seven of that Act, and as if notice to treat for the purchase of the interest had been served at the time when the direction comes into operation.

6. Where the direction comes into operation before the expiration of two years from the end of the war period, Part VIII of the Requisitioned Land and War Works Act, 1945 (which provides for adjustments of compensation for the purpose of eliminating changes in value due to the exercise of emergency powers) shall apply in relation to any compensation payable under the preceding provisions of this Schedule as it applies where compensation is payable on the acquisition of an easement over land by virtue of Part II of that Act :

Provided that for the purposes of this paragraph :—

- (a) subsection (5) of section forty-one of the said Act of 1945 shall have effect as if paragraph (a) thereof were omitted therefrom ; and
- (b) the reference in subsection (7) of the said section forty-one to Part II of the Town and Country Planning Act, 1944, shall be construed as a reference to sections fifty-eight to sixty of that Act as applied by this Schedule.

In this paragraph the expression " war period " has the same meaning as it has in section forty of the said Act of 1945.

7. Paragraph 12 of the Third Schedule to this Act shall have effect in relation to any compensation payable under the preceding provisions of this Schedule as it has effect in relation to any such compensation as is therein mentioned.

4TH SCH.
—cont.

8. Any person who sustains damage by being disturbed in the enjoyment of any right in or over land in consequence of the coming into operation of the direction (not being damage which consists of the diminution in the value of an interest in land) shall be entitled to recover compensation from the Minister in respect of that damage.

9. The Minister shall pay compensation in respect of any expenditure reasonably incurred by any person for the purpose of carrying out work which is required to be carried out by the direction.

10. The compensation payable to any person by virtue of the preceding provisions of this Schedule shall be reduced by the value to him of any timber, apparatus or other materials removed for the purposes of complying with the direction.

11. For the purpose of assessing compensation under this Schedule, in so far as it is payable in respect of the diminution in the value of an interest in land, section two of the Acquisition of Land (Assessment of Compensation) Act, 1919, shall, so far as it is applicable and subject to any necessary modifications, have effect as it has effect for the purpose of assessing compensation for the compulsory acquisition of land.

12. Where any dispute arises as to whether compensation is payable under this Schedule, or as to the amount of any such compensation, or as to the persons to whom it is payable, the dispute shall be referred to and determined by such one of the official arbitrators appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919, as may be selected in accordance with rules made by the Reference Committee under that section; and rules so made may make provision with respect to the reference and determination of any such dispute and may apply any of the provisions of sections three to six of the said Act with such modifications as may be necessary.

13. Where the direction affects any building, structure, or apparatus held or used by a statutory undertaker for the purposes of his undertaking, or affects any of the rights of a statutory undertaker to install or maintain apparatus for those purposes, or affects any right of way enjoyed by a statutory undertaker for those purposes, the undertaker shall be entitled to recover compensation from the Minister in accordance with the special provisions of Part II of this Act relating to statutory undertakers in any case in which those provisions apply, and shall not, in any such case, be entitled to recover compensation under the preceding paragraphs of this Schedule.

PART III.

14. In the application of this Schedule to Scotland—

(a) in paragraph 1, for the words "any land to which the right of way is appurtenant" there shall be substituted the words "the dominant tenement";

(b) in paragraph 4, for references to section fifty-seven of the Town and Country Planning Act, 1944, and to section sixty-eight of the Lands Clauses Consolidation Act, 1845, there shall be substituted respectively references to section fifty-

three of the Town and Country Planning (Scotland) Act, 1945, and to section six of the Railways Clauses Consolidation (Scotland) Act, 1845 ;

4TH SCH.
—*cont.*

- (c) in paragraph 5, for references to sections fifty-eight, fifty-nine and sixty of the Town and Country Planning Act, 1944, and to subsection (r) of section fifty-seven of that Act, there shall be substituted respectively references to sections fifty-four, fifty-five and fifty-six of the Town and Country Planning (Scotland) Act, 1945, and to subsection (r) of section fifty-three of that Act ;
- (d) in paragraph 6, for the reference to sections fifty-eight to sixty of the Town and Country Planning Act, 1944, there shall be substituted a reference to sections fifty-four to fifty-six of the Town and Country Planning (Scotland) Act, 1945 ; and
- (e) for any reference to an arbitrator there shall be substituted a reference to an arbiter.

15. For the purposes of the application of this Act to Northern Ireland, this Schedule shall have effect as if paragraphs 4, 5 and 13 were omitted therefrom.

FIFTH SCHEDULE.

Section 33.

ADJUSTMENTS OF THE FUNCTIONS OF STATUTORY UNDERTAKERS.

PART I.

1. Where it appears to the Minister and the appropriate Minister, upon a representation made by the person carrying on a statutory undertaking, that in order to facilitate any adjustment of the carrying on of the undertaking necessitated by any order made or proposed to be made under or in pursuance of Part II of this Act, or by any direction given or proposed to be given in pursuance of the said Part II, it is expedient that the powers and duties of the said person in relation to the carrying on of the undertaking should be extended or modified, the Minister and the appropriate Minister may by order provide for such extension or modification of the said powers and duties as appears to them to be requisite for facilitating the adjustment.

2. Without prejudice to the generality of the provisions of the preceding paragraph, an order under this Part of this Schedule may provide—

- (a) for empowering the person carrying on the undertaking to acquire, whether compulsorily or by agreement, any land specified in the order and to erect or construct any buildings or works so specified ;
- (b) for applying in relation to the acquisition of such land and the construction of such works enactments relating to the acquisition of land and the construction of works (including

5TH SCH.
—cont.

the Acquisition of Land (Assessment of Compensation) Act, 1919 and Part II of the Town and Country Planning Act, 1944);

and for such incidental and supplemental matters as appear to the Minister and the appropriate Minister to be expedient for the purposes of the order.

3. As soon as may be after the making of a representation under this Part of this Schedule, the person carrying on the undertaking shall publish, in such form and manner as may be directed by the Minister and the appropriate Minister, a notice giving such particulars as may be so directed of the matters to which the representation relates and specifying the time within which, and the manner in which, objections to the making of an order on the representation may be made, and shall also, if it is so directed by the Minister and the appropriate Minister, serve a like notice on such persons, or persons of such classes, as may be so directed.

4. The provisions of the First Schedule to the Town and Country Planning Act, 1944, shall have effect as if the reference in sub-paragraph (1) of paragraph 1 of that Schedule to the making of an order under section twenty-six of that Act included a reference to the making of an order under this Part of this Schedule; and, subject to those provisions in a case in which they have effect, the Minister and the appropriate Minister may, if they think fit, make an order.

5. An order under this Part of this Schedule shall be subject to special parliamentary procedure.

PART II.

6. Where on a representation in that behalf made by the person carrying on a statutory undertaking the appropriate Minister is satisfied that the making of any order under or in pursuance of Part II of this Act or the giving of any direction in pursuance of the said Part II has rendered impracticable the fulfilment of any obligation of the said person incurred in connection with the carrying on of the undertaking, the appropriate Minister may by order direct that the said person shall be relieved of the fulfilment of the obligation either absolutely or to such extent as may be specified in the order.

7. As soon as may be after the making of a representation to the appropriate Minister under the last preceding paragraph, the person carrying on the undertaking in question shall, as may be directed by the appropriate Minister, either publish, in such manner as may be so directed, a notice giving such particulars as may be so directed of the matters to which the representation relates and specifying the time within which, and the manner in which, objections to the making of an order on the representation may be made, or serve such a notice on such persons, or persons of such classes, as may be so directed, or both publish and serve such notices.

8. The provisions of the First Schedule to the Town and Country Planning Act, 1944, shall have effect as if the reference in sub-paragraph (1) of paragraph 1 of that Schedule to the making of an order under section twenty-seven of that Act included a reference to the making

of an order under this Part of this Schedule; and subject to those provisions in a case in which they have effect, the appropriate Minister may, if he thinks fit, make an order.

5TH SCH.
—cont.

9. If any objection to the making of an order under this Part of this Schedule is made and is not withdrawn before the making of the order, the order shall be subject to special parliamentary procedure.

PART III.

10. In this Schedule the expression "the appropriate Minister" means—

- (a) in relation to a railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour pier or lighthouse undertaking, the Minister of Transport;
- (b) in relation to an undertaking for the supply of electricity, gas or hydraulic power, the Minister of Fuel and Power; and
- (c) in relation to an undertaking for the supply of water, the Minister of Health.

PART IV.

11. This Schedule shall apply to Scotland subject to the following modifications:—

- (a) for any reference to the Minister of Health there shall be substituted a reference to the Secretary of State;
- (b) for the purposes of this Schedule the expression "the appropriate Minister" means, in relation to the undertaking of the North of Scotland Hydro-Electric Board, the Secretary of State;
- (c) for references to the Town and Country Planning Act, 1944, to sections twenty-six and twenty-seven thereof, to Part II thereof, to the First Schedule thereto and to sub-paragraph (1) of paragraph 1 of that Schedule there shall be substituted respectively references to the Town and Country Planning (Scotland) Act, 1945, to sections twenty-five and twenty-six thereof, to Part II thereof, to the First Schedule thereto, and to sub-paragraph (1) of paragraph 1 of that Schedule.

SIXTH SCHEDULE.

Section 37.

PROVISIONS RELATING TO ORDERS UNDER SECTION THIRTY-SEVEN OF THIS ACT.

1. Any person having an interest in land to which the order relates shall, if the value of the interest is diminished by the coming into operation of the order, be entitled to recover compensation from the Minister for the diminution.

2. Where the order comes into operation during the period of five years beginning with the seventeenth day of November, nineteen

6TH SCH.
—cont.

hundred and forty-four, section fifty-seven of the Town and Country Planning Act, 1944, shall have effect in relation to any compensation payable by virtue of the last preceding paragraph as if it were compensation under section sixty-eight of the Lands Clauses Consolidation Act, 1845, for damage sustained, during the said period, by reason of the land being injuriously affected by the execution of works upon other land acquired by a government department in pursuance of a notice to treat served during that period.

3. Where compensation is payable under the preceding provisions of this Schedule for the diminution in value of an interest in land and is assessed in accordance with the last preceding paragraph, the provisions of sections fifty-eight, fifty-nine and sixty of the Town and Country Planning Act, 1944 (which provide for supplements to compensation) shall have effect as if the compensation were compensation for the purchase by the Minister of the interest in question and were assessed subject to the rule set out in subsection (1) of section fifty-seven of that Act, and as if notice to treat for the purchase of the interest had been served at the time when the order comes into operation.

4. Where the order comes into operation before the expiration of two years from the end of the war period, Part VIII of the Requisitioned Land and War Works Act, 1945 (which provides for adjustments of compensation for the purpose of eliminating changes in value due to the exercise of emergency powers) shall apply in relation to any compensation payable under the preceding provisions of this Schedule as it applies where compensation is payable on the acquisition of an easement over land by virtue of Part II of that Act :

Provided that for the purposes of this paragraph :—

- (a) subsection (5) of section forty-one of the said Act of 1945 shall have effect as if paragraph (a) thereof were omitted therefrom ; and
- (b) the reference in subsection (7) of the said section forty-one to Part II of the Town and Country Planning Act, 1944, shall be construed as a reference to sections fifty-eight to sixty of that Act as applied by this Schedule.

In this paragraph the expression “ war period ” has the same meaning as it has in section forty of the said Act of 1945.

5. Paragraph 12 of the Third Schedule to this Act shall have effect in relation to any compensation payable under the preceding provisions of this Schedule as it has effect in relation to any such compensation as is therein mentioned.

6. Any person who sustains damage by being disturbed in the use of land or water by reason of the coming into operation of the order (not being damage which consists of the diminution in the value of an interest in land) shall be entitled to recover compensation from the Minister for the damage.

7. Paragraphs 11 and 12 of the Fourth Schedule to this Act shall have effect in relation to compensation payable under this Schedule as they have effect in relation to compensation payable under that Schedule.

8. In the application of this Schedule to Scotland—

6TH SCH.
—cont.

- (a) in paragraph 2 for references to section fifty-seven of the Town and Country Planning Act, 1944, and to section sixty-eight of the Lands Clauses Consolidation Act, 1845, there shall be substituted respectively references to section fifty-three of the Town and Country Planning (Scotland) Act, 1945, and to section six of the Railways Clauses Consolidation (Scotland) Act, 1845;
- (b) in paragraph 3 for references to sections fifty-eight, fifty-nine and sixty of the Town and Country Planning Act, 1944, and to subsection (1) of section fifty-seven of that Act, there shall be substituted respectively references to sections fifty-four, fifty-five and fifty-six of the Town and Country Planning (Scotland) Act, 1945, and to subsection (1) of section fifty-three of that Act;
- (c) in paragraph 4 for the reference to sections fifty-eight to sixty of the Town and Country Planning Act, 1944, there shall be substituted a reference to sections fifty-four to fifty-six of the Town and Country Planning (Scotland) Act, 1945; and
- (d) for any reference to an arbitrator there shall be substituted a reference to an arbiter.

9. For the purposes of the application of this Act to Northern Ireland, this Schedule shall have effect as if paragraphs 2 and 3 were omitted therefrom.